

**UNITED STATES BANKRUPTCY COURT
DISTRICT OF CONNECTICUT
BRIDGEPORT DIVISION**

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	:	
In re:	:	Chapter 11
	:	
HO WAN KWOK, <i>et al.</i> , ¹	:	Case No. 22-50073 (JAM)
	:	
Debtors.	:	(Jointly Administered)
	:	
	:	
	:	
LUC A. DESPINS, CHAPTER 11	:	
TRUSTEE,	:	
	:	Adv. Proceeding No. 24-05252
Plaintiff,	:	
	:	
v.	:	
	:	
GETTR USA, INC,	:	
	:	
Defendant.	:	
	x	

**DECLARATION OF ERIN RYAN IN SUPPORT OF MOTION
OF CHAPTER 11 TRUSTEE FOR ESTATE OF HO WAN KWOK
FOR ENTRY OF DEFAULT JUDGMENT AGAINST
DEFENDANT GETTR USA, INC**

I, Erin T. Ryan, declare:

1. I am a partner at the law firm of Neubert, Pepe & Monteith, P.C., 195 Church Street, 13th Floor, New Haven, Connecticut 06510 and counsel for Luc A. Despins, in his capacity as the chapter 11 trustee (the “Trustee”) appointed in the chapter 11 case of Ho Wan Kwok (the “Debtor”),

¹ The Debtors in these chapter 11 cases are Ho Wan Kwok (also known as Guo Wengui, Miles Guo, and Miles Kwok, as well as numerous other aliases) (last four digits of tax identification number: 9595), Genever Holdings LLC (last four digits of tax identification number: 8202) and Genever Holdings Corporation. The mailing address for the Trustee, Genever Holdings LLC, and the Genever Holdings Corporation is Paul Hastings LLP, 200 Park Avenue, New York, NY 10166 c/o Luc A. Despins, as Trustee for the Estate of Ho Wan Kwok (solely for purposes of notices and communications).

individual debtor in the above-captioned jointly administered cases (collectively, the “Chapter 11 Cases”).

2. I respectfully submit this declaration based upon personal knowledge and my review of relevant documents in support of the Trustee’s Motion for Entry of Default Judgment against defendant Gettr USA, Inc filed concurrently herewith, in accordance with Rule 7055 of the Federal Rules of Bankruptcy Procedure (the “Bankruptcy Rules”) and Local Bankruptcy Rule 7055-1 of the Local Rules of Bankruptcy Procedure for the District of Connecticut.

3. On February 15, 2024, the Trustee commenced this adversary proceeding by filing a complaint against Gettr USA, Inc (the “Defendant”) seeking avoidance and recovery of fraudulent transfers and unauthorized postpetition transfers and related relief [Adv. ECF No. 1] (the “Original Complaint”). A copy of the Original Complaint, and the schedules affixed thereto, is annexed to this declaration as **Exhibit 1**.

4. On February 26, 2024, the Clerk of the Court issued a *Summons in an Adversary Proceeding* [Adv. ECF No. 4] (the “Summons”). Pursuant to the Summons, the deadline for the Defendant to respond to the Original Complaint was 60 days from proper service of the Summons and Complaint. A copy of the Summons is annexed to this declaration as **Exhibit 2**.

5. The undersigned certifies that on March 4, 2024, the Summons, the Original Complaint, and the *Notice of Applicability of Avoidance Action Procedures* [Adv. ECF No. 3] were delivered via first-class Mail, via UPS or Federal Express overnight delivery, and via email upon the Defendant, as documented in the Trustee’s *Certificate of Service Regarding Summons, Complaint, and Notice of Applicability of Avoidance Action Procedures* [Adv. ECF No. 9] (the “Certificate of Service”). Service was effectuated on the Defendant’s registered agent for service

as set forth in the corporate registry maintained by the state of incorporation via the address of the principal place of business.

6. The Defendant was served in the United States. See **Exhibit 3**.

7. On February 13, 2025, the Trustee filed an amended complaint [Adv. ECF No. 20] (the “**Amended Complaint**”). A copy of the Amended Complaint, and the schedules affixed thereto, is annexed to this declaration as **Exhibit 4**.

8. The Trustee’s claims against the Defendant were stayed pursuant to the Court’s *Order Directing Parties to Mediation, Appointing the Honorable James J. Tancredi as Mediator, and Amending Avoidance Action Procedures Order* [Main Case ECF No. 3163], which stay was lifted as ordered by the Court at a hearing on November 3, 2025, and as memorialized in the Court’s *Order: (A) Granting in Part Chapter 11 Trustee’s Motion for Entry of Order Amending Avoidance and Mediation Procedures; and (B) Entering Avoidance Actions Pretrial Order* [Main Case ECF No. 4828] (the “**Avoidance Pretrial Order**”).

9. Pursuant to the Avoidance Pretrial Order (at p. 8), the Defendant’s deadline to file an Answer was December 15, 2025.

10. The Defendant did not respond to the Amended Complaint on or before December 15, 2025, and has not filed a motion or answer to the Amended Complaint as of the date hereof.

11. On February 26, 2026, the Trustee requested entry of default against the Defendant for failure to plead or otherwise defend pursuant to Civil Rule 55(a). [Adv. ECF No. 29]. A copy of this request is annexed to this declaration as **Exhibit 5**.

12. On March 2, 2026, the Clerk entered the default against the Defendant. [Adv. ECF No. 30]. A copy of the Clerk’s Entry of Default against the Defendant is annexed to this declaration as **Exhibit 6**.

13. The Defendant remains in default.

Pursuant to 28 U.S.C. § 1746, to the best of my knowledge, information and belief, and after reasonable inquiry, I declare under penalty of perjury that the foregoing is true and correct.

Dated: May 11, 2026
New Haven, CT

/s/ Erin T. Ryan
Erin T. Ryan, Esq.
NEUBERT, PEPE & MONTEITH, P.C.

Exhibit 1

B1040 (FORM 1040) (12/15)

ADVERSARY PROCEEDING COVER SHEET (Instructions on Reverse)		ADVERSARY PROCEEDING NUMBER (Court Use Only)
PLAINTIFFS Luc A. Despins, Chapter 11 Trustee	DEFENDANTS Gettr USA, Inc.	
ATTORNEYS (Firm Name, Address, and Telephone No.) Avram E. Luft and Douglass Barron Paul Hastings LLP, 200 Park Avenue, New York, NY 10166 (212) 318-6000	ATTORNEYS (If Known)	
PARTY (Check One Box Only) ☐ Debtor ☐ U.S. Trustee/Bankruptcy Admin ☐ Creditor ☐ Other ☒ Trustee	PARTY (Check One Box Only) ☐ Debtor ☐ U.S. Trustee/Bankruptcy Admin ☐ Creditor ☐ Other ☐ Trustee	
CAUSE OF ACTION (WRITE A BRIEF STATEMENT OF CAUSE OF ACTION, INCLUDING ALL U.S. STATUTES INVOLVED) Complaint of Chapter 11 Trustee seeking avoidance and recovery of fraudulent transfers and postpetition transfers and related relief pursuant to Bankruptcy Code Sections 549 and 550		
NATURE OF SUIT (Number up to five (5) boxes starting with lead cause of action as 1, first alternative cause as 2, second alternative cause as 3, etc.)		
FRBP 7001(1) – Recovery of Money/Property ☐ 11-Recovery of money/property - §542 turnover of property ☐ 12-Recovery of money/property - §547 preference ☐ 13-Recovery of money/property - §548 fraudulent transfer ☒ 14-Recovery of money/property - other FRBP 7001(2) – Validity, Priority or Extent of Lien ☐ 21-Validity, priority or extent of lien or other interest in property FRBP 7001(3) – Approval of Sale of Property ☐ 31-Approval of sale of property of estate and of a co-owner - §363(h) FRBP 7001(4) – Objection/Revocation of Discharge ☐ 41-Objection / revocation of discharge - §727(c),(d),(e) FRBP 7001(5) – Revocation of Confirmation ☐ 51-Revocation of confirmation FRBP 7001(6) – Dischargeability ☐ 66-Dischargeability - §523(a)(1),(14),(14A) priority tax claims ☐ 62-Dischargeability - §523(a)(2), false pretenses, false representation, actual fraud ☐ 67-Dischargeability - §523(a)(4), fraud as fiduciary, embezzlement, larceny (continued next column)	FRBP 7001(6) – Dischargeability (continued) ☐ 61-Dischargeability - §523(a)(5), domestic support ☐ 68-Dischargeability - §523(a)(6), willful and malicious injury ☐ 63-Dischargeability - §523(a)(8), student loan ☐ 64-Dischargeability - §523(a)(15), divorce or separation obligation (other than domestic support) ☐ 65-Dischargeability - other FRBP 7001(7) – Injunctive Relief ☐ 71-Injunctive relief – imposition of stay ☐ 72-Injunctive relief – other FRBP 7001(8) Subordination of Claim or Interest ☐ 81-Subordination of claim or interest FRBP 7001(9) Declaratory Judgment ☐ 91-Declaratory judgment FRBP 7001(10) Determination of Removed Action ☐ 01-Determination of removed claim or cause Other ☐ SS-SIPA Case – 15 U.S.C. §§78aaa <i>et seq.</i> ☐ 02-Other (e.g. other actions that would have been brought in state court if unrelated to bankruptcy case)	
☒ Check if this case involves a substantive issue of state law	☐ Check if this is asserted to be a class action under FRCP 23	
☐ Check if a jury trial is demanded in complaint	Demand \$	
Other Relief Sought		

B1040 (FORM 1040) (12/15)

BANKRUPTCY CASE IN WHICH THIS ADVERSARY PROCEEDING ARISES		
NAME OF DEBTOR Ho Wan Kwok		BANKRUPTCY CASE NO. 22-50073
DISTRICT IN WHICH CASE IS PENDING Connecticut	DIVISION OFFICE Bridgeport	NAME OF JUDGE Julie A. Manning
RELATED ADVERSARY PROCEEDING (IF ANY)		
PLAINTIFF	DEFENDANT	ADVERSARY PROCEEDING NO.
DISTRICT IN WHICH ADVERSARY IS PENDING	DIVISION OFFICE	NAME OF JUDGE
SIGNATURE OF ATTORNEY (OR PLAINTIFF) /s/ Avram E. Luft		
DATE February 15, 2024	PRINT NAME OF ATTORNEY (OR PLAINTIFF) Avram E. Luft	

INSTRUCTIONS

The filing of a bankruptcy case creates an “estate” under the jurisdiction of the bankruptcy court which consists of all of the property of the debtor, wherever that property is located. Because the bankruptcy estate is so extensive and the jurisdiction of the court so broad, there may be lawsuits over the property or property rights of the estate. There also may be lawsuits concerning the debtor’s discharge. If such a lawsuit is filed in a bankruptcy court, it is called an adversary proceeding.

A party filing an adversary proceeding must also must complete and file Form 1040, the Adversary Proceeding Cover Sheet, unless the party files the adversary proceeding electronically through the court’s Case Management/Electronic Case Filing system (CM/ECF). (CM/ECF captures the information on Form 1040 as part of the filing process.) When completed, the cover sheet summarizes basic information on the adversary proceeding. The clerk of court needs the information to process the adversary proceeding and prepare required statistical reports on court activity.

The cover sheet and the information contained on it do not replace or supplement the filing and service of pleadings or other papers as required by law, the Bankruptcy Rules, or the local rules of court. The cover sheet, which is largely self-explanatory, must be completed by the plaintiff’s attorney (or by the plaintiff if the plaintiff is not represented by an attorney). A separate cover sheet must be submitted to the clerk for each complaint filed.

Plaintiffs and Defendants. Give the names of the plaintiffs and defendants exactly as they appear on the complaint.

Attorneys. Give the names and addresses of the attorneys, if known.

Party. Check the most appropriate box in the first column for the plaintiffs and the second column for the defendants.

Demand. Enter the dollar amount being demanded in the complaint.

Signature. This cover sheet must be signed by the attorney of record in the box on the second page of the form. If the plaintiff is represented by a law firm, a member of the firm must sign. If the plaintiff is pro se, that is, not represented by an attorney, the plaintiff must sign.

**UNITED STATES BANKRUPTCY COURT
DISTRICT OF CONNECTICUT
BRIDGEPORT DIVISION**

-----;

In re:	Chapter 11
HO WAN KWOK, <i>et al.</i> , ¹	Case No. 22-50073 (JAM)
Debtors.	(Jointly Administered)

-----;

LUC A. DESPINS, CHAPTER 11 TRUSTEE,	Adv. Proceeding No. [_____]
Plaintiff,	
v.	

February 15, 2024

GETTR USA, INC.,	
Defendant.	

-----;

**COMPLAINT OF CHAPTER 11 TRUSTEE SEEKING AVOIDANCE AND RECOVERY
OF POSTPETITION TRANSFERS AND RELATED RELIEF PURSUANT TO
BANKRUPTCY CODE SECTIONS 549 AND 550**

Luc A. Despins, in his capacity as the chapter 11 trustee (the “Trustee”) appointed in the chapter 11 case (the “Chapter 11 Case”) of Ho Wan Kwok (the “Debtor” or “Kwok”), files this adversary complaint (the “Complaint”) against defendant GETTR USA, Inc. (the “Defendant”), stating as follows:

¹ The Debtors in these chapter 11 cases are Ho Wan Kwok (also known as Guo Wengui, Miles Guo, and Miles Kwok, as well as numerous other aliases) (last four digits of tax identification number: 9595), Genever Holdings LLC (last four digits of tax identification number: 8202) and Genever Holdings Corporation. The mailing address for the Trustee, Genever Holdings LLC, and the Genever Holdings Corporation is Paul Hastings LLP, 200 Park Avenue, New York, NY 10166 c/o Luc A. Despins, as Trustee for the Estate of Ho Wan Kwok (solely for purposes of notices and communications).

NATURE OF ACTION

1. The Trustee commences this adversary proceeding to avoid and recover transfers of property of the Debtor's estate perpetrated by the Debtor after the commencement of this Chapter 11 Case and not authorized by the Bankruptcy Court or under Title 11 of the United States Code (the "Bankruptcy Code").

2. The Debtor, through his alter-ego shell company Hamilton Opportunity Fund SPC ("Hamilton") transferred funds in the amount of \$21,000,000 after the Petition Date (as defined herein) to the Defendant as initial transferee.

3. Because these postpetition transfers of estate property were not authorized by the Court or under the Bankruptcy Code, they are subject to avoidance and recovery under sections 549 and 550 of the Bankruptcy Code.

JURISDICTION AND VENUE

4. This Court has subject matter jurisdiction over this adversary proceeding pursuant to 28 U.S.C. § 1334(b).

5. This adversary proceeding has been referred to this Court pursuant to 28 U.S.C. § 157(a).

6. The statutory predicates for the relief sought herein include 11 U.S.C. §§ 549 and 550.

THE PARTIES

7. The Trustee is the chapter 11 trustee in the Chapter 11 Case pursuant to the Bankruptcy Court's order entered on July 8, 2022 [Case No. 22-50073 (the "Main Case") Docket No. 523].

8. The Defendant is a Delaware entity with an address at 3 Columbus Circle, New York, NY 10019.

FACTS

A. Chapter 11 Case

9. The Debtor filed a voluntary petition for relief under Chapter 11 of Title 11 of the Bankruptcy Code on February 15, 2022 (the “Petition Date”) in the United States Bankruptcy Court for the District of Connecticut (the “Court” or “Bankruptcy Court”), thus commencing the above-captioned chapter 11 case (the “Chapter 11 Case”).

10. On March 21, 2022, the Office of the United States Trustee appointed an Official Committee of Unsecured Creditors in this Chapter 11 Case. No examiner has been appointed.

11. The Debtor’s bankruptcy schedules, filed in March 2022 with the Bankruptcy Court, claimed that he owned \$3,850 in assets and had incurred hundreds of millions of dollars of liabilities.² While the Debtor was, indeed, deeply indebted, his schedules failed to disclose the Debtor’s property as held and/or transferred through his many alter-ego shell companies, including GFNY.

12. On June 15, 2022, the Court entered a memorandum of decision and order [Main Case Docket No. 465] directing the United States Trustee to appoint a chapter 11 trustee in the Chapter 11 Case. Pursuant to this order, the United States Trustee selected Luc A. Despins as the Trustee. On July 8, 2022, the Court entered an order granting the appointment of Luc A. Despins as the Trustee in the Chapter 11 Case [Main Case Docket No. 523].

² Schedule of Assets and Liabilities, at 1 (Main Case, Docket No. 78).

B. Debtor's Use of Shell Companies and Trustee's Adversary Proceedings

13. Hamilton³ is among the numerous alter-ego shell companies used by the Debtor to defraud his creditors. For years, the Debtor has orchestrated a “shell game,” employing a convoluted web of shell companies, nominally owned by family members and subordinates, but in reality, controlled by the Debtor. This shell game enabled the Debtor to use, spend, and transfer millions of dollars of cash and other assets while concealing his property from creditors.

14. Since his appointment, the Trustee has commenced a number of adversary proceedings in the Chapter 11 Case to, among other things, establish that the Debtor's shell companies were his alter-egos and/or that such companies and their assets were equitably owned by the Debtor and in several the Bankruptcy Court has already granted such relief.⁴

15. The fact patterns in these litigations consistently involve: (i) Debtor-controlled shell companies held by close family members and/or subordinates, (ii) assets purchased with cash from other Debtor-controlled entities and/or transferred to and among shell entities for no consideration, and (iii) the Debtor benefiting from and having control and dominion over such assets.

16. The Debtor also used his alter egos, including Hamilton, as personal piggy-banks, funding the lavish lifestyle to which he and his family had become accustomed, while concealing assets in these alter egos from his creditors and hindering and delaying creditors from recoveries

³ The Trustee has or will imminently commence an adversary proceeding against Hamilton Opportunity Fund SPC, which adversary proceeding seeks, among other things, a declaratory judgment that Hamilton Opportunity Fund SPC is the alter ego of the Debtor. The Trustee incorporates by reference herein, the Trustee's Complaint filed in such adversary proceeding.

⁴ These include the following adversary proceedings: (i) Luc A. Despins, Chapter 11 Trustee v. HK International Funds Investments (USA) Limited, LLC, et al. [Adv. Proc. No. 22-05003]; (ii) Luc A. Despins, Chapter 11 Trustee v. Greenwich Land LLC, et al. [Adv. Proc. No. 23-05005]; (iii) Luc A. Despins, Chapter 11 Trustee v. Mei Guo [Adv. Proc. No. 23-05008]; (iv) Luc A. Despins, Chapter 11 Trustee v. HCHK Technologies, Inc., et al. [Adv. Proc. No. 23-05013]; (v) Luc A. Despins, Chapter 11 Trustee v. Taurus Fund LLC, et al. [Adv. Proc. No. 23-05017]; (vi) Luc A. Despins, Chapter 11 Trustee v. Golden Spring (New York) Limited [Adv. Proc. 23-05018]; and (vii) Luc A. Despins, Chapter 11 Trustee v. Lamp Capital LLC, et al. [Adv. Proc. 23-05023].

on their claims. The transfers that the Debtor effectuated through these alter egos perpetuated the Debtor's fraudulent scheme. The property of these alter egos, including Hamilton, was at all times property of the Debtor.

C. Debtor's Shell Game and Fraud Continues Postpetition

17. As of the Petition Date, all of the Debtor's property held through his alter egos, including Hamilton, became property of the chapter 11 estate. *See* 11 U.S.C. § 541(a)(1).

18. Following the Petition Date, the Debtor, with blatant disregard for the Bankruptcy Court and his obligations under the Bankruptcy Code, continued to effectuate transfers through numerous alter-ego shell companies, including, without limitation, Hamilton.

19. None of these postpetition transfers were authorized by the Bankruptcy Court nor were such transfers authorized under the Bankruptcy Code.

D. Transfers to the Defendant

20. Subsequent to the Petition Date, the Debtor, through shell companies including Hamilton, or otherwise, transferred property of the Debtor's chapter 11 estate to the Defendant (collectively, the "Transfers"), including, without limitation, as follows:

See SCHEDULE A attached hereto and made a part hereof.

21. At the time of the Transfers, the Debtor had outstanding obligations to creditors of the Debtor's estate.

22. The Defendant was the initial transferee of the Transfers.

FIRST CLAIM

(Claim to Avoid and Recover Unauthorized Postpetition Transfers pursuant to Bankruptcy Code sections 549 and 550(a))

23. The Trustee repeats and realleges the allegations contained in paragraphs 1-22 as if fully set forth herein.

24. The Transfers were made to the Defendant by the Debtor, including through his alter-ego shell company, Hamilton.

25. The Transfers occurred after the Petition Date.

26. The Transfers were not authorized by the Bankruptcy Court or by the Bankruptcy Code.

27. The Transfers constituted the unauthorized transfer of property of the Debtor's chapter 11 estate.

28. The Transfers are avoidable pursuant to section 549(a) of the Bankruptcy Code.

29. Pursuant to section 550(a) of the Bankruptcy Code, the Trustee is entitled to recover the Transfers, or the value thereof, from the Defendant plus interest thereon to the date of payment and the costs of this action.

PRAYER FOR RELIEF

WHEREFORE, for the foregoing reasons, the Trustee respectfully requests that judgment be entered as follows:

1. An order (a) declaring that the Transfers in an amount not less than \$21,000,000 are avoided pursuant to section 549 of the Bankruptcy Code; and (b) an order directing that the Transfers be set aside; and (c) recovery of the Transfers, or the value thereof at the Trustee's option, from the Defendant for the benefit of the Debtor's estate pursuant to section 550(a)(1) of

the Bankruptcy Code;

2. Awarding the Trustee pre-judgment interest at the maximum legal rate from the date of the filing of this Complaint to the date of judgment herein; and

3. Such other and further relief as the Court may deem just, proper, or equitable under the circumstances.

[Remainder of page intentionally left blank.]

Dated: February 15, 2024
New Haven, CT

LUC A. DESPINS
CHAPTER 11 TRUSTEE

By: /s/ Avram E. Luft
Avram E. Luft (admitted pro hac vice)
Douglass Barron (admitted pro hac vice)
PAUL HASTINGS LLP
200 Park Avenue
New York, New York 10166
(212) 318-6000
aviluft@paulhastings.com
douglassbarron@paulhastings.com

and

Douglas S. Skalka (ct00616)
Patrick R. Linsey (ct29437)
NEUBERT, PEPE & MONTEITH, P.C.
195 Church Street, 13th Floor
New Haven, Connecticut 06510
(203) 781-2847
dskalka@npmlaw.com
plinsey@npmlaw.com

Counsel for the Chapter 11 Trustee

SCHEDULE A

Filed Under Seal

Exhibit 2

United States Bankruptcy Court
District of Connecticut



In re: HO WAN KWOK, *et al.*,¹

Case Number: 22-50073

Debtors

Chapter: 11

(Jointly Administered)

Luc A. Despins, Chapter 11 Trustee,
Plaintiff,

v.

Gettr USA, Inc.
Defendant(s)

Adversary Proceeding
No: 24-05252 (JAM)

SUMMONS IN AN ADVERSARY PROCEEDING

To the Plaintiff:

In accordance with Fed. R. Bankr. P. 7004(e), on or before **March 4, 2024**, you must serve this Summons and a copy of the Complaint filed on February 15, 2024, on all Defendants in accordance with Fed. R. Bankr. P. 7004(a) or (b), except any Defendants to be served in a foreign country.

If service is made on any named Defendants in a foreign country, you must serve this Summons and a copy of the Complaint filed on February 15, 2024, on all such named Defendants in accordance with Fed. R. Civ. P. 4(f), (h), and (j), made applicable by Fed. R. Bankr. P. 7004(a)(1).

You must also complete the attached Certificate of Service of Process and file the completed Certificate with the Bankruptcy Court electronically or at the address listed on the second page of this Summons.

To the Defendant(s):

YOU ARE SUMMONED and, if you are a Defendant properly served with this Summons and the Complaint in accordance with the instruction above and applicable rules within a judicial district of the United States, pursuant to Fed. R. Bankr. P. 7012(a), you are required to file, electronically or with the Clerk of the Bankruptcy Court at the address in this Summons, a motion or answer to the Complaint on or before 60 days from the service of this Summons.

If you are a Defendant served with this Summons and the Complaint in a foreign country, you are required to file, electronically or with the Clerk of the Bankruptcy Court at the address in this Summons, a motion or answer to the Complaint within 60 days from proper service of the Summons and Complaint, unless the Court orders a different deadline to file a motion or answer to the Complaint upon motion made pursuant to Fed. R. Bankr. P. 7012(a).

¹ The Debtors in these chapter 11 cases are Ho Wan Kwok (also known as Guo Wengui, Miles Guo, and Miles Kwok, as well as numerous other aliases) (last four digits of tax identification number: 9595), Genever Holdings LLC (last four digits of tax identification number: 8202) and Genever Holdings Corporation. The mailing address for the Trustee, Genever Holdings LLC, Genever Holdings Corporation is Paul Hastings LLP, 200 Park Avenue, New York, NY 10166 c/o Luc A. Despins, as Trustee for the Estate of Ho Wan Kwok (solely for purposes of notices and communications).

At the same time, you must also serve a copy of the motion or answer upon the Plaintiff's attorney:

Avram Emmanuel Luft, Esq.
Paul Hastings LLP
200 Park Avenue
New York, NY 10166

If you make a motion under Fed. R. Bankr. P. 7012, your time to answer is governed by Fed. R. Bankr. P. 7012.

IF YOU FAIL TO RESPOND TO THIS SUMMONS, A JUDGMENT BY DEFAULT MAY BE ENTERED AGAINST YOU FOR THE RELIEF DEMANDED IN THE COMPLAINT.

Dated: **February 26, 2024**



Pietro Cicolini
Clerk of Court

United States Bankruptcy Court
District of Connecticut
915 Lafayette Boulevard
Bridgeport, CT 06604

CERTIFICATE OF SERVICE OF PROCESS

Adv. Pro. Number: 24-05252 (JAM)

I, _____, certify that service of this Summons and a
(name)
copy of the complaint was made on _____ by (check one below):
(date)

- ☐ **Mail service:** Regular, First-Class United States mail, postage fully pre-paid, addressed to:
- ☐ **Personal Service:** By leaving the process with defendant or with an officer or agent of defendant at:
- ☐ **Residence Service:** By leaving the process with the following adult at:
- ☐ **Certified Mail Service on an Insured Depository Institution:** By sending the process by certified mail addressed to the following officer of the defendant at:
- ☐ **Publication:** The defendant was served as follows:
- ☐ **State Law:** The defendant was served pursuant to the laws of the State of _____, as follows:

If service was made by personal service, by residence service, or pursuant to state law, I further certify that I am, and at all times during the service of process was, not less than 18 years of age and not a party to the matter concerning which service of process was made.

Under penalty of perjury, I declare that the foregoing is true and correct.

Date

Signature

Print Name

Business Address

City, State, Zip

Exhibit 3

**UNITED STATES BANKRUPTCY COURT
DISTRICT OF CONNECTICUT
BRIDGEPORT DIVISION**

	X	
	:	
In re:	:	Chapter 11
	:	
HO WAN KWOK, <i>et al.</i> , ¹	:	Case No. 22-50073 (JAM)
	:	
Debtors.	:	(Jointly Administered)
	:	
	X	
	:	
LUC A. DESPINS, CHAPTER 11	:	
TRUSTEE,	:	
	:	Adv. Proceeding No. 24-05252 (JAM)
Plaintiff,	:	
	:	
v.	:	
	:	
	:	
GETTR USA, INC.,	:	
	:	
Defendant.	:	
	X	

**CERTIFICATE OF SERVICE REGARDING SUMMONS, COMPLAINT, AND NOTICE
OF APPLICABILITY OF AVOIDANCE ACTION PROCEDURES**

On February 15, 2024, Luc A. Despins, in his capacity as the chapter 11 trustee (the “Trustee”) appointed in the chapter 11 case (the “Chapter 11 Case”) of Ho Wan Kwok (the “Debtor”), filed his *Adversary Complaint* and certain exhibits thereto [Adv. Proc. ECF No. 1]

¹ The Debtors in these chapter 11 cases are Ho Wan Kwok (also known as Guo Wengui, Miles Guo, and Miles Kwok, as well as numerous other aliases) (last four digits of tax identification number: 9595), Genever Holdings LLC (last four digits of tax identification number: 8202) and Genever Holdings Corporation. The mailing address for the Trustee, Genever Holdings LLC, and the Genever Holdings Corporation is Paul Hastings LLP, 200 Park Avenue, New York, NY 10166 c/o Luc A. Despins, as Trustee for the Estate of Ho Wan Kwok (solely for purposes of notices and communications).

(collectively, the “Complaint”) using the Court’s case management/electronic case files system (“CM/ECF”).

On February 15, 2024, the Trustee filed the *Notice of Applicability of Avoidance Action Procedures* [Adv. Proc. ECF No. 3] (the “Procedures Notice”).

On February 26, 2024, the *Summons* [Adv. Proc. ECF. No. 4] (the “Summons” and, together with the Complaint, and the Procedures Notice, collectively, the “Served Documents”) via CM/ECF.

On March 4, 2024, I caused the Served Documents to be sent via first-class U.S. Mail, via UPS or Federal Express overnight delivery, and via email to defendant Gettr USA, Inc.. at the following address(es):

Gettr USA, Inc.
3 Columbus Circle,
New York, NY 10019
Attn: Officer, Managing or General Agent

Gettr USA, Inc.
c/o C T Corporation System
28 Liberty Street
New York, NY 10005

Gettr USA, Inc.
c/o The Corporation Trust Company
Corporation Trust Center
1209 Orange Street
Wilmington, DE 19801

Justin Weddle: jweddle@weddlelaw.com

Dated: March 28, 2024
New Haven, Connecticut

LUC A. DESPINS,
CHAPTER 11 TRUSTEE

/s/ Patrick R. Linsey
Patrick R. Linsey (ct29437)
NEUBERT, PEPE & MONTEITH, P.C.
195 Church Street, 13th Floor
New Haven, Connecticut 06510
(203) 781-2847
plinsey@npmlaw.com

Counsel for the Chapter 11 Trustee

Exhibit 4

**UNITED STATES BANKRUPTCY COURT
DISTRICT OF CONNECTICUT
BRIDGEPORT DIVISION**

	-----X	
	:	
In re:	:	Chapter 11
	:	
HO WAN KWOK, <i>et al.</i> , ¹	:	Case No. 22-50073 (JAM)
	:	
Debtors.	:	(Jointly Administered)
	:	
	-----X	
	:	
LUC A. DESPINS, CHAPTER 11	:	
TRUSTEE,	:	
	:	Adv. Proceeding No. 24-05252
Plaintiff,	:	
v.	:	
	:	
	:	February 13, 2025
	:	
GETTR USA, INC.,	:	
	:	
Defendant.	:	
	-----X	

**FIRST AMENDED COMPLAINT OF CHAPTER 11 TRUSTEE SEEKING
AVOIDANCE AND RECOVERY OF FRAUDULENT TRANSFERS AND
POSTPETITION TRANSFERS AND RELATED RELIEF PURSUANT TO
BANKRUPTCY CODE SECTIONS 544, 548, 549 AND 550 AND NEW YORK DEBTOR
& CREDITOR LAW SECTIONS 273(a) AND 276**

Luc A. Despins, in his capacity as the chapter 11 trustee (the “Trustee”) appointed in the chapter 11 case (the “Chapter 11 Case”) of Ho Wan Kwok (the “Debtor” or “Kwok”), files this

¹ The Debtors in these chapter 11 cases are Ho Wan Kwok (also known as Guo Wengui, Miles Guo, and Miles Kwok, as well as numerous other aliases) (last four digits of tax identification number: 9595), Genever Holdings LLC (last four digits of tax identification number: 8202) and Genever Holdings Corporation. The mailing address for the Trustee, Genever Holdings LLC, and the Genever Holdings Corporation is Paul Hastings LLP, 200 Park Avenue, New York, NY 10166 c/o Luc A. Despins, as Trustee for the Estate of Ho Wan Kwok (solely for purposes of notices and communications).

amended adversary complaint (the “Complaint”) against defendant GETTR USA, Inc. (the “Defendant”), stating as follows:

NATURE OF ACTION

1. The Trustee commences this adversary proceeding to avoid and recover transfers of property of the Debtor’s estate perpetrated by the Debtor after the commencement of this Chapter 11 Case and not authorized by the Bankruptcy Court or under Title 11 of the United States Code (the “Bankruptcy Code”).

2. The Debtor, through his alter-ego shell company GFNY Inc. (“GFNY”), transferred funds in the amount of \$59,453.40 prior to the Petition Date (as defined herein) to the Defendant as the initial transferee.

3. These transfers were actually fraudulent, because the Debtor effectuated them as part of his “shell game,” and they were made with the intent to hinder, delay, and/or defraud the Debtor’s creditors.

4. Following the Petition Date, the Debtor, through his alter-ego shell companies, Hamilton Opportunity Fund SPC (“Hamilton”), GFNY and ACA Capital Group Ltd (“ACA Capital”) and collectively with Hamilton and GFNY, the “Relevant Alter Egos”) transferred funds in the amount of \$35,599,740.00 after the Petition Date (as defined herein) to the Defendant as initial transferee.

5. Because these postpetition transfers of estate property were not authorized by the Court or under the Bankruptcy Code, they are subject to avoidance and recovery under sections 549 and 550 of the Bankruptcy Code.

JURISDICTION AND VENUE

6. This Court has subject matter jurisdiction over this adversary proceeding pursuant to 28 U.S.C. § 1334(b).

7. This adversary proceeding has been referred to this Court pursuant to 28 U.S.C. § 157(a).

8. The statutory predicates for the relief sought herein include sections 544, 548, 549, and 550 of the Bankruptcy Code and New York Debtor & Creditor Law sections 273 and 276² or any other applicable state law equivalents.

THE PARTIES

9. The Trustee is the chapter 11 trustee in the Chapter 11 Case pursuant to the Bankruptcy Court's order entered on July 8, 2022 [Case No. 22-50073 (the "Main Case") Docket No. 523].

10. The Defendant is a Delaware entity with an address at 3 Columbus Circle, New York, NY 10019.

FACTS

A. Chapter 11 Case

11. The Debtor filed a voluntary petition for relief under Chapter 11 of Title 11 of the Bankruptcy Code on February 15, 2022 (the "Petition Date") in the United States Bankruptcy

² All statutory references to New York Debtor and Creditor Law will hereinafter be referred to as "N.Y. Debt. & Cred. Law".

Court for the District of Connecticut (the “Court” or “Bankruptcy Court”), thus commencing the above-captioned chapter 11 case (the “Chapter 11 Case”).

12. On March 21, 2022, the Office of the United States Trustee appointed an Official Committee of Unsecured Creditors in this Chapter 11 Case. No examiner has been appointed.

13. The Debtor’s bankruptcy schedules, filed in March 2022 with the Bankruptcy Court, claimed that he owned \$3,850 in assets and had incurred hundreds of millions of dollars of liabilities.³ While the Debtor was, indeed, deeply indebted, his schedules failed to disclose the Debtor’s property as held and/or transferred through his many alter-ego shell companies, including the Relevant Alter Egos.

14. On June 15, 2022, the Court entered a memorandum of decision and order [Main Case Docket No. 465] directing the United States Trustee to appoint a chapter 11 trustee in the Chapter 11 Case. Pursuant to this order, the United States Trustee selected Luc A. Despins as the Trustee. On July 8, 2022, the Court entered an order granting the appointment of Luc A. Despins as the Trustee in the Chapter 11 Case [Main Case Docket No. 523].

B. Debtor’s Use of Shell Companies and Trustee’s Adversary Proceedings

15. The Relevant Alter Egos are among the numerous alter-ego shell companies used by the Debtor to defraud his creditors. For years, the Debtor has orchestrated a “shell game,” employing a convoluted web of shell companies, nominally owned by family members and subordinates, but in reality, controlled by the Debtor. This shell game enabled the Debtor to use, spend, and transfer millions of dollars of cash and other assets while concealing his property from creditors.

³ Schedule of Assets and Liabilities, at 1 (Main Case, Docket No. 78).

16. Since his appointment, the Trustee has commenced a number of adversary proceedings in the Chapter 11 Case to, among other things, establish that the Debtor's shell companies were his alter-egos and/or that such companies and their assets were equitably owned by the Debtor and in several the Bankruptcy Court has already granted such relief.⁴

17. The Trustee is pursuing this or substantially similar relief with respect to the Relevant Alter Egos in *Despins v. ACA Capital Group Ltd*, et al. [Adv. Proc. No. 24-05249] (the "Omnibus A.P."). The Trustee incorporates by reference herein his Complaint filed in the Omnibus A.P. (Omnibus A.P., Docket No. 1).

18. The fact patterns in these litigations consistently involve: (i) Debtor-controlled shell companies held by close family members and/or subordinates, (ii) assets purchased with cash from other Debtor-controlled entities and/or transferred to and among shell entities for no consideration, and (iii) the Debtor benefiting from and having control and dominion over such assets.

C. Debtor's Conduct to Hinder, Delay, and/or Defraud Creditors

19. In addition to the matters addressed in the Trustee's adversary proceedings, the Bankruptcy Court has found that the Debtor was the beneficial owner of Ace Decade Limited (and

⁴ These include the following adversary proceedings: (i) *Luc A. Despins, Chapter 11 Trustee v. HK International Funds Investments (USA) Limited, LLC*, et al. [Adv. Proc. No. 22-05003]; (ii) *Luc A. Despins, Chapter 11 Trustee v. Greenwich Land LLC*, et al. [Adv. Proc. No. 23-05005]; (iii) *Luc A. Despins, Chapter 11 Trustee v. Mei Guo* [Adv. Proc. No. 23-05008]; (iv) *Luc A. Despins, Chapter 11 Trustee v. HCHK Technologies, Inc.*, et al. [Adv. Proc. No. 23-05013]; (v) *Luc A. Despins, Chapter 11 Trustee v. Taurus Fund LLC*, et al. [Adv. Proc. No. 23-05017]; (vi) *Luc A. Despins, Chapter 11 Trustee v. Golden Spring (New York) Limited* [Adv. Proc. 23-05018]; (vii) *Luc A. Despins, Chapter 11 Trustee v. Lamp Capital LLC*, et al. [Adv. Proc. 23-05023]; (viii) *Luc A. Despins, Chapter 11 Trustee v. AA Global Ventures Limited.*, et al. [Adv. Proc. 24-05322]; and (ix) *Luc A. Despins, Chapter 11 Trustee v. Bouillor Holdings Limited*, et al. [Adv. Proc. No. 24-5311].

through it, Dawn State Limited) and that the Debtor controlled and employed Ace Decade Limited's nominee shareholder, Yvette Wang.⁵

20. The Bankruptcy Court has also found that the "G Entities" (Gettr, G Fashion, G Music, G Clubs, G News and GEdu), the New Federal State of China and the Rule of Law Foundation, as well as other purportedly independent entities and organizations, were controlled by the Debtor,⁶ led by the Debtor⁷ and/or served "the purposes of... and as business vehicles of" the Debtor.⁸

21. Prior to the Petition Date, Judge Liman of the United States District Court for the Southern District of New York found that Eastern Profit Corporation Limited, an entity originally owned by one of the Debtor's chefs before its transfer to Debtor's daughter, was "in essence, a shell corporation" for the Debtor.⁹

22. The Debtor has gone to great lengths to hinder and delay the collection efforts of one of his largest creditors, *i.e.*, Pacific Alliance Asia Opportunity Fund, L.P. ("PAX"). In 2017, PAX sued the Debtor in the Supreme Court of the State of New York (the "New York Court"), Index No. 652077/2017 (the "PAX Case"), seeking judgment for monies owed. On February 3, 2021, PAX obtained a judgment from the New York Court against the Debtor in the sum of

⁵ Order Granting Motion to Hold Debtor in Contempt of Corporate Governance Order, ¶¶ 1, 4 (Jan. 24, 2023, Docket No. 1372 ("Corp. Governance Contempt Order").

⁶ *Corrected Memorandum of Decision Granting in Part Motion for Preliminary Injunction*, ¶ 3 (Adv. Proc. No. 22-05032, January 13, 2023 ("The Debtor also controls Saraca Media Group and a related entity 'GTV'").

⁷ *Id.* at ¶ 7 ("The Debtor is the leader of The Whistleblower Movement, NFSC, ROLF and Himalaya.").

⁸ *Id.* ("The Whistleblower Movement, NFSC, ROLF, GSeries, and Himalaya serve the purposes of the Debtor, serve as business vehicles for the Debtor, and their members are personally loyal to the Debtor.").

⁹ *Eastern Profit Corp. Ltd. v. Strategic Vision US LLC*, No. 18-CV-2185 (LJL) 2021 WL 2554631, at *1 (S.D.N.Y. June 22, 2021).

\$116,402,019.57 (the “PAX Judgment”). PAX sought to enforce the PAX Judgment by levying the Debtor’s assets—including the Lady May, which the Debtor falsely claimed was owned by his daughter, and the Debtor’s luxury apartment in Manhattan, which the Debtor falsely claimed was held in trust for the Debtor’s son. The Debtor’s defiance of New York Court orders in post-judgment proceedings eventually resulted in the Debtor incurring contempt penalties of \$134 million.

23. The Debtor also used his alter egos, including the Relevant Alter Egos, as personal piggy-banks, funding the lavish lifestyle to which he and his family had become accustomed, while concealing assets in these alter egos from his creditors and hindering and delaying creditors from recoveries on their claims. The transfers that the Debtor effectuated through these alter egos perpetuated the Debtor’s fraudulent scheme.

24. The Debtor has testified before the Bankruptcy Court that he has insufficient assets to pay his liabilities and that his luxurious lifestyle is funded by his family through businesses nominally held by family members.¹⁰ The Debtor scheduled only \$3,850 in assets.¹¹

25. In March 2023, the Debtor was arrested by federal authorities and held without bail. On July 16, 2024, following a trial in the United States District Court for the Southern District of New York, the Debtor was convicted of nine felony counts, *i.e.*, racketeering conspiracy, conspiracy to commit wire fraud and bank fraud, money laundering conspiracy, conspiracy to commit securities fraud, wire fraud in connection with the Farm Loan Program, securities fraud in

¹⁰ Hearing on Debtor’s Motion for Entry of Interim and Final DIP Orders (I) Authorizing the Debtor to Obtain Unsecured, Subordinated Postpetition Financing and (II) Scheduling Interim and Final Hearings, and (III) Granting Related Relief (Main Case, April 27, 2022)

¹¹ See n.3.

connection with the Farm Loan program, wire fraud in connection with G|CLUBS, securities fraud in connection with G|CLUBS, and wire fraud in connection with the Himalaya Exchange.

26. In its criminal indictment of the Debtor, the United States Government asserted that the Debtor and his co-defendants “utilized more than approximately 500 accounts held in the names of *at least 80 different entities or individuals* to launder more than \$1 billion in fraud proceeds.”¹²

27. The property of the Debtor’s alter egos, including the Relevant Alter Egos, was at all times prior to the Petition Date property of the Debtor.

28. At all times relevant herein, the Debtor conducted business in New York, New York, including direction of the Transfers (as defined herein).

D. Debtor’s Shell Game and Fraud Continues Postpetition

29. As of the Petition Date, all of the Debtor’s property held through his alter egos, including Hamilton, became property of the chapter 11 estate. *See* 11 U.S.C. § 541(a)(1).

30. Following the Petition Date, the Debtor, with blatant disregard for the Bankruptcy Court and his obligations under the Bankruptcy Code, continued to effectuate transfers through numerous alter-ego shell companies, including, without limitation, ACA Capital and GFNY.

31. None of these postpetition transfers were authorized by the Bankruptcy Court nor were such transfers authorized under the Bankruptcy Code.

E. Transfers Made with Intent to Hinder, Delay, or Defraud Creditors

¹² *See* Memorandum of Law of the United States of America in Opposition to Defendant Yanping Wang’s Motion for Pretrial Release at 29, attached as Exhibit B in the Reply of Chapter 11 Trustee to G Club Operations LLC’s Supplemental Objection to Trustee’s Motion to Compel and Request for Related Relief (June 23, 2023, Main Case Docket No. 1934).

32. The Transfers (as defined herein) at issue in this Complaint were made with the intent to hinder, delay, and/or defraud the Debtor's creditors inasmuch as they were made through the Debtor's alter-ego shell companies operated as a part of the Debtor's shell game.

33. The Debtor intentionally orchestrated his financial affairs in this manner in order to conceal and dissipate millions of dollars in assets while falsely pleading poverty to his many creditors. The Debtor claimed to be destitute while simultaneously spending heavily to maintain a billionaire lifestyle for himself and for his family members and close associates.

34. The assets concealed and dissipated by the Debtor included funds that he obtained from the victims of his cryptocurrency, securities, and other fraud schemes. As a result of this conduct, the Debtor has been convicted of multiple felony fraud, money laundering, and racketeering charges in a criminal case pending in the U.S. District Court for the Southern District of New York. *See United States v. Ho Wan Kwok*, case no. 1:23-cr-00118-AT [ECF No. 395] (July 18, 2024 S.D.N.Y.).

35. The Debtor knew and intended that by concealing and dissipating his assets in this manner there would not be sufficient assets remaining to repay his creditors—including the many victims of his frauds. These transfers were thus necessarily made with the intent to hinder, delay, and/or defraud the Debtor's creditors

F. Transfers to the Defendant

36. Prior to the Petition Date, the Debtor, using his alter ego shell company, GFNY, or otherwise, transferred the Debtor's property to the Defendant (the "Prepetition Transfers"), including, without limitation, as follows:

See **SCHEDULE A** attached hereto and made a part hereof

37. Subsequent to the Petition Date, the Debtor, through shell companies including the Relevant Alter Egos, or otherwise, transferred property of the Debtor's chapter 11 estate to the Defendant (collectively, the "Postpetition Transfers"), including, without limitation, as follows:

See **SCHEDULE B** attached hereto and made a part hereof.

38. At the time of the Prepetition Transfers and the Postpetition Transfers (collectively, the "Transfers"), the Debtor had outstanding obligations to creditors of the Debtor's estate.

39. The Defendant was the initial transferee of the Transfers.

FIRST CLAIM

(Claim to Avoid and Recover Actual Fraudulent Transfers Pursuant to Bankruptcy Code sections 548(a)(1)(A) and 550(a))

40. The Trustee repeats and realleges the allegations contained in paragraphs 1-39 as if fully set forth herein.

41. The Prepetition Transfers were made by the Debtor through his alter ego, GFNY, with the actual intent to hinder, delay and/or defraud his creditors.

42. The Debtor's intent to hinder, delay, and/or defraud his creditors in effectuating the Prepetition Transfers is shown by, among other things:

- a. The Prepetition Transfers were effectuated using alter-ego shell companies;
- b. The Prepetition Transfers were concealed from the Debtor's creditors;
- c. The Prepetition Transfers were effectuated as part of the Debtor's "shell game" with the aid of the Debtor's family members and other lieutenants and subordinates that he controlled in an effort to conceal and shield assets;

d. The Prepetition Transfers furthered the Debtor's fraudulent conduct by enabling the Debtor to profit from his fraud without subjecting his property to the reach of his creditors;

e. At the time of the Prepetition Transfers, the Debtor was being sued, including by PAX in the PAX Case; and

f. At the time of the Prepetition Transfers, the Debtor was insolvent or undercapitalized.

43. The Prepetition Transfers are avoidable by the Trustee pursuant to section 548(a)(1)(A) of the Bankruptcy Code and are recoverable pursuant to section 550(a) of the Bankruptcy Code.

SECOND CLAIM

(Claim to Avoid and Recover Actual Fraudulent Transfers pursuant to N.Y. Debt. & Cred. Law sections 273 and 276, and Bankruptcy Code sections 544(b) and 550(a))

44. The Trustee repeats and realleges the allegations contained in paragraphs 1-39 as if fully set forth herein.

45. The Prepetition Transfers were made by the Debtor, through his alter ego company, GFNY, with the actual intent to hinder, delay and/or defraud his creditors.

46. The Debtor's intent to hinder, delay, and/or defraud his creditors in effectuating the Prepetition Transfers is shown by, among other things:

- a. The Prepetition Transfers were effectuated using alter-ego shell companies;
- b. The Prepetition Transfers were concealed from the Debtor's creditors;

c. The Prepetition Transfers were effectuated as part of the Debtor's "shell game" with the aid of the Debtor's family members and other lieutenants and subordinates that he controlled in an effort to conceal and shield assets;

d. The Prepetition Transfers furthered the Debtor's fraudulent conduct by enabling the Debtor to profit from his fraud without subjecting his property to the reach of his creditors;

e. At the time of the Prepetition Transfers, the Debtor was being sued, including by PAX in the PAX Case; and

f. At the time of the Prepetition Transfers, the Debtor was insolvent or undercapitalized.

47. The Prepetition Transfers are avoidable by the Trustee pursuant to N.Y. Debt. & Cred. Law sections 273(a)(1) and 276, and section 544(b) of the Bankruptcy Code and recoverable pursuant to section 550(a) of the Bankruptcy Code.

THIRD CLAIM

(Claim to Avoid and Recover Unauthorized Postpetition Transfers pursuant to Bankruptcy Code sections 549 and 550(a))

48. The Trustee repeats and realleges the allegations contained in paragraphs 1-39 as if fully set forth herein.

49. The Postpetition Transfers were made to the Defendant by the Debtor, including through his alter-ego shell companies, Hamilton, ACA Capital and GFNY.

50. The Postpetition Transfers occurred after the Petition Date.

51. The Postpetition Transfers were not authorized by the Bankruptcy Court or by the Bankruptcy Code.

52. The Postpetition Transfers constituted the unauthorized transfer of property of the Debtor's chapter 11 estate.

53. The Postpetition Transfers are avoidable pursuant to section 549(a) of the Bankruptcy Code.

54. Pursuant to section 550(a) of the Bankruptcy Code, the Trustee is entitled to recover the Postpetition Transfers, or the value thereof, from the Defendant plus interest thereon to the date of payment and the costs of this action.

PRAYER FOR RELIEF

WHEREFORE, for the foregoing reasons, the Trustee respectfully requests that judgment be entered as follows:

1. On the First Claim, (a) an order declaring that the Transfers in an amount not less than \$59,453.40 are avoided pursuant to section 548(a)(1)(A) of the Bankruptcy Code; (b) an order directing that the Prepetition Transfers be set aside; and (c) recovery of the Prepetition Transfers, or the value thereof at the Trustee's option, from the Defendant for the benefit of the Debtor's estate pursuant to section 550(a)(1) of the Bankruptcy Code;

2. On the Second Claim, (a) an order declaring that the Prepetition Transfers in an amount not less than \$59,453.40 are avoided pursuant to section 544(b) of the Bankruptcy Code and N.Y. Debt. & Cred. Law sections 273(a)(1) and 276; (b) an order directing that the Prepetition Transfers be set aside; and (c) recovery of the Prepetition Transfers, or the value thereof at the Trustee's option, from the Defendant for the benefit of the Debtor's estate pursuant to N.Y. Debt & Cred. Law section 276 and section 550(a)(1) of the Bankruptcy Code;

3. On the Third Claim, an order (a) declaring that the Postpetition Transfers in an amount not less than \$35,599,740.00 are avoided pursuant to section 549 of the Bankruptcy Code; and (b) an order directing that the Postpetition Transfers be set aside; and (c) recovery of the Postpetition Transfers, or the value thereof at the Trustee's option, from the Defendant for the benefit of the Debtor's estate pursuant to section 550(a)(1) of the Bankruptcy Code;

4. Awarding the Trustee pre-judgment interest at the maximum legal rate from the date of the filing of this Complaint to the date of judgment herein; and

5. Such other and further relief as the Court may deem just, proper, or equitable under the circumstances.

Dated: February 13, 2025
New Haven, CT

LUC A. DESPINS,
CHAPTER 11 TRUSTEE

By: /s/ Douglas S. Skalka

Douglas S. Skalka (ct00616)
Patrick R. Linsey (ct29437)
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Counsel for the Chapter 11 Trustee

SCHEDULE A

FILED UNDER SEAL

SCHEDULE B

FILED UNDER SEAL

Exhibit 5

**UNITED STATES BANKRUPTCY COURT
DISTRICT OF CONNECTICUT
BRIDGEPORT DIVISION**

	X	
	:	
In re:	:	Chapter 11
	:	
HO WAN KWOK, <i>et al.</i> , ¹	:	Case No. 22-50073 (JAM)
	:	
Debtors.	:	(Jointly Administered)
	:	
	X	
	:	
LUC A. DESPINS, CHAPTER 11	:	
TRUSTEE,	:	
	:	Adv. Proceeding No. 24-05252
Plaintiff,	:	
	:	
v.	:	
	:	
GETTR USA, INC.,	:	
	:	
	:	
Defendant.	:	
	X	

**REQUEST OF CHAPTER 11 TRUSTEE FOR ENTRY OF DEFAULT AGAINST
GETTR USA, INC. PURSUANT TO FEDERAL
RULE OF CIVIL PROCEDURE 55(a) AND FEDERAL
RULE OF BANKRUPTCY PROCEDURE 7055**

Plaintiff Luc A. Despins, in his capacity as the chapter 11 trustee (the “Trustee”) in the estate of Ho Wan Kwok (the “Debtor”), individual debtor in the above-captioned jointly administered cases (collectively, the “Chapter 11 Cases”), respectfully moves this Court (the “Motion”) for the entry of default against defendant Gettr USA, Inc. (the “Defaulting Defendant”).

¹ The Debtors in these chapter 11 cases are Ho Wan Kwok (also known as Guo Wengui, Miles Guo, and Miles Kwok, as well as numerous other aliases) (last four digits of tax identification number: 9595), Genever Holdings LLC (last four digits of tax identification number: 8202) and Genever Holdings Corporation. The mailing address for the Trustee, Genever Holdings LLC, and the Genever Holdings Corporation is Paul Hastings LLP, 200 Park Avenue, New York, NY 10166 c/o Luc A. Despins, as Trustee for the Estate of Ho Wan Kwok (solely for purposes of notices and communications).

Attached as **Exhibit A** is the *Declaration of Erin Ryan in Support of Request for Entry of Default*.

Attached as **Exhibit B** is a proposed form of entry of default.

The Trustee represents that the adversary complaint [Adv. Proc. Docket No. 1] (the “Complaint”) was properly served upon the Defaulting Defendant and the time limit for appearing has passed and that the Defaulting Defendant has failed to respond to the Trustee’s Complaint, nor did the Defaulting Defendant respond to the amended adversary complaint [Adv. Proc. Docket No. 20] (the “Amended Complaint”) as required by Rules 12 and 15 of the Federal Rules of Civil Procedure, made applicable to this proceeding by Rules 7012 and 7015 of the Federal Rules of Bankruptcy Procedure.

WHEREFORE, the Trustee, pursuant to Rule 55(a) of the Federal Rules of Civil Procedure, made applicable to this proceeding by Rule 7055 of the Federal Rules of Bankruptcy Procedure, and Local Bankruptcy Rule 7055-1 of the Local Rules of Bankruptcy Procedure for the District of Connecticut, respectfully requests that the Clerk of the Bankruptcy Court for the District of Connecticut enter default against the Defaulting Defendant for failure to appear and plead.

Dated: February 26, 2026
New Haven, CT

LUC A. DESPINS,
CHAPTER 11 TRUSTEE

By: /s/ Erin T. Ryan

Patrick R. Linsey (ct29437)
Erin T. Ryan (ct32005)
Douglas S. Skalka (ct00616)
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Counsel for the Chapter 11 Trustee

EXHIBIT A

**UNITED STATES BANKRUPTCY COURT
DISTRICT OF CONNECTICUT
BRIDGEPORT DIVISION**

	X	
	:	
In re:	:	Chapter 11
	:	
HO WAN KWOK, <i>et al.</i> , ¹	:	Case No. 22-50073 (JAM)
	:	
Debtors.	:	(Jointly Administered)
	:	
	X	
	:	
LUC A. DESPINS, CHAPTER 11	:	
TRUSTEE,	:	
	:	Adv. Proceeding No. 24-05252
Plaintiff,	:	
	:	
v.	:	
	:	
GETTR USA, INC.,	:	
	:	
	:	
Defendant.	:	
	X	

**DECLARATION OF ERIN RYAN IN SUPPORT OF REQUEST OF CHAPTER 11
TRUSTEE FOR ENTRY OF DEFAULT AGAINST GETTR USA, INC. PURSUANT TO
FEDERAL RULE OF CIVIL PROCEDURE
55(a) AND FEDERAL RULE OF BANKRUPTCY PROCEDURE 7055**

I, Erin T. Ryan, declare:

1. I am a partner at the law firm of Neubert, Pepe & Monteith, P.C., 195 Church Street, 13th Floor, New Haven, Connecticut 06510 and counsel for Luc A. Despins, in his capacity as the chapter 11 trustee (the “Trustee”) of the estate of Ho Wan Kwok (the “Debtor”), individual debtor in the above-captioned jointly administered cases (collectively, the “Chapter 11 Cases”).

¹ The Debtors in these chapter 11 cases are Ho Wan Kwok (also known as Guo Wengui, Miles Guo, and Miles Kwok, as well as numerous other aliases) (last four digits of tax identification number: 9595), Genever Holdings LLC (last four digits of tax identification number: 8202) and Genever Holdings Corporation. The mailing address for the Trustee, Genever Holdings LLC, and the Genever Holdings Corporation is Paul Hastings LLP, 200 Park Avenue, New York, NY 10166 c/o Luc A. Despins, as Trustee for the Estate of Ho Wan Kwok (solely for purposes of notices and communications).

2. I respectfully submit this declaration based upon personal knowledge and my review of relevant documents in support of the Trustee's request for entry of default by the Clerk of the Bankruptcy Court for the District of Connecticut (the "Clerk of the Court") in the above-captioned adversary proceeding, in accordance with Rule 7055 of the Federal Rules of Bankruptcy Procedure and Local Bankruptcy Rule 7055-1 of the Local Rules of Bankruptcy Procedure for the District of Connecticut, against defendant Gettr USA, Inc. (the "Defaulting Defendant").

3. On February 15, 2024, the Trustee commenced this adversary proceeding by filing an adversary complaint [Adv. Proc. Docket No. 1] (the "Complaint") against the Defaulting Defendant.²

4. On February 15, 2024, the Trustee filed the Notice of Applicability of Avoidance Action Procedures [Adv. Proc. Docket No. 3] (the "Procedures Notice," together with the Complaint and Summons, collectively, the "Served Documents").

5. On February 26, 2024, the Clerk of the Court issued a *Summons in an Adversary Proceeding* [Adv. Proc. Docket No. 4] (the "Summons").³

6. The undersigned certifies that the Served Documents were served via U.S. Mail and via UPS or Federal Express overnight delivery on March 4, 2024 to defendant Gettr USA, Inc. at 3 Columbus Circle, New York, NY 10019, Attn: Officer, Managing or General Agent; c/o The Corporation Trust Company, Corporation Trust Center, 1209 Orange Street, Wilmington, DE 19801; and c/o C T Corporation System, 28 Liberty Street, New York, NY 10005 and via email on March 4, 2024 to counsel for defendant Gettr USA, Inc., Justin Weddle, at jweddle@weddlelaw.com.

² A copy of the Complaint is annexed to this declaration as Exhibit 1.

³ A copy of the Summons is annexed to this declaration as Exhibit 2.

7. The foregoing is memorialized in the Trustee’s *Certificate of Service Regarding Summons and Adversary Complaint* [Adv. Proc. Docket No. 9] (the “Certificate of Service”).⁴

8. On February 13, 2025, the Trustee filed an amended complaint [Adv. Proc. Docket No. 20] (the “Amended Complaint”).⁵

9. On the basis of the above, the Trustee submits that the Defaulting Defendant was properly served with the Summons and Complaint.

10. The Trustee’s claims against the Defaulting Defendant were stayed pursuant to the Court’s *Order Directing Parties to Mediation, Appointing the Honorable James J. Tancredi as Mediator, and Amending Avoidance Action Procedures Order* [Main Case ECF No. 3163], which stay was lifted as ordered by the Court at a hearing on November 3, 2025, and as memorialized in the Court’s *Order: (A) Granting in Part Chapter 11 Trustee’s Motion for Entry of Order Amending Avoidance and Mediation Procedures; and (B) Entering Avoidance Actions Pretrial Order* [Main Case ECF No. 4828] (the “Avoidance Pretrial Order”).

11. Pursuant to the Avoidance Pretrial Order (at p. 8), the Defendant’s deadline to file an Answer was December 15, 2025.

12. The Defaulting Defendant has not appeared in the action.

13. The Defaulting Defendant has not responded to the Complaint, the Amended Complaint, or otherwise defended this adversary proceeding.

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct. Executed on February 25, 2026, at New Haven, CT.

/s/ Erin T. Ryan
Erin T. Ryan, Esq.
NEUBERT, PEPE & MONTEITH, P.C.

⁴ A copy of the Certificate of Service is annexed to this declaration as **Exhibit 3**.

⁵ A copy of the Amended Complaint is annexed to this declaration as **Exhibit 4**.

EXHIBIT 1

B1040 (FORM 1040) (12/15)

ADVERSARY PROCEEDING COVER SHEET (Instructions on Reverse)		ADVERSARY PROCEEDING NUMBER (Court Use Only)
PLAINTIFFS Luc A. Despins, Chapter 11 Trustee	DEFENDANTS Gettr USA, Inc.	
ATTORNEYS (Firm Name, Address, and Telephone No.) Avram E. Luft and Douglass Barron Paul Hastings LLP, 200 Park Avenue, New York, NY 10166 (212) 318-6000	ATTORNEYS (If Known)	
PARTY (Check One Box Only) ☐ Debtor ☐ U.S. Trustee/Bankruptcy Admin ☐ Creditor ☐ Other ☒ Trustee	PARTY (Check One Box Only) ☐ Debtor ☐ U.S. Trustee/Bankruptcy Admin ☐ Creditor ☐ Other ☐ Trustee	
CAUSE OF ACTION (WRITE A BRIEF STATEMENT OF CAUSE OF ACTION, INCLUDING ALL U.S. STATUTES INVOLVED) Complaint of Chapter 11 Trustee seeking avoidance and recovery of fraudulent transfers and postpetition transfers and related relief pursuant to Bankruptcy Code Sections 549 and 550		
NATURE OF SUIT (Number up to five (5) boxes starting with lead cause of action as 1, first alternative cause as 2, second alternative cause as 3, etc.)		
FRBP 7001(1) – Recovery of Money/Property ☐ 11-Recovery of money/property - §542 turnover of property ☐ 12-Recovery of money/property - §547 preference ☐ 13-Recovery of money/property - §548 fraudulent transfer ☒ 14-Recovery of money/property - other FRBP 7001(2) – Validity, Priority or Extent of Lien ☐ 21-Validity, priority or extent of lien or other interest in property FRBP 7001(3) – Approval of Sale of Property ☐ 31-Approval of sale of property of estate and of a co-owner - §363(h) FRBP 7001(4) – Objection/Revocation of Discharge ☐ 41-Objection / revocation of discharge - §727(c),(d),(e) FRBP 7001(5) – Revocation of Confirmation ☐ 51-Revocation of confirmation FRBP 7001(6) – Dischargeability ☐ 66-Dischargeability - §523(a)(1),(14),(14A) priority tax claims ☐ 62-Dischargeability - §523(a)(2), false pretenses, false representation, actual fraud ☐ 67-Dischargeability - §523(a)(4), fraud as fiduciary, embezzlement, larceny (continued next column)	FRBP 7001(6) – Dischargeability (continued) ☐ 61-Dischargeability - §523(a)(5), domestic support ☐ 68-Dischargeability - §523(a)(6), willful and malicious injury ☐ 63-Dischargeability - §523(a)(8), student loan ☐ 64-Dischargeability - §523(a)(15), divorce or separation obligation (other than domestic support) ☐ 65-Dischargeability - other FRBP 7001(7) – Injunctive Relief ☐ 71-Injunctive relief – imposition of stay ☐ 72-Injunctive relief – other FRBP 7001(8) Subordination of Claim or Interest ☐ 81-Subordination of claim or interest FRBP 7001(9) Declaratory Judgment ☐ 91-Declaratory judgment FRBP 7001(10) Determination of Removed Action ☐ 01-Determination of removed claim or cause Other ☐ SS-SIPA Case – 15 U.S.C. §§78aaa <i>et seq.</i> ☐ 02-Other (e.g. other actions that would have been brought in state court if unrelated to bankruptcy case)	
☒ Check if this case involves a substantive issue of state law	☐ Check if this is asserted to be a class action under FRCP 23	
☐ Check if a jury trial is demanded in complaint	Demand \$	
Other Relief Sought		

B1040 (FORM 1040) (12/15)

BANKRUPTCY CASE IN WHICH THIS ADVERSARY PROCEEDING ARISES		
NAME OF DEBTOR Ho Wan Kwok		BANKRUPTCY CASE NO. 22-50073
DISTRICT IN WHICH CASE IS PENDING Connecticut	DIVISION OFFICE Bridgeport	NAME OF JUDGE Julie A. Manning
RELATED ADVERSARY PROCEEDING (IF ANY)		
PLAINTIFF	DEFENDANT	ADVERSARY PROCEEDING NO.
DISTRICT IN WHICH ADVERSARY IS PENDING	DIVISION OFFICE	NAME OF JUDGE
SIGNATURE OF ATTORNEY (OR PLAINTIFF) /s/ Avram E. Luft		
DATE February 15, 2024	PRINT NAME OF ATTORNEY (OR PLAINTIFF) Avram E. Luft	

INSTRUCTIONS

The filing of a bankruptcy case creates an “estate” under the jurisdiction of the bankruptcy court which consists of all of the property of the debtor, wherever that property is located. Because the bankruptcy estate is so extensive and the jurisdiction of the court so broad, there may be lawsuits over the property or property rights of the estate. There also may be lawsuits concerning the debtor’s discharge. If such a lawsuit is filed in a bankruptcy court, it is called an adversary proceeding.

A party filing an adversary proceeding must also must complete and file Form 1040, the Adversary Proceeding Cover Sheet, unless the party files the adversary proceeding electronically through the court’s Case Management/Electronic Case Filing system (CM/ECF). (CM/ECF captures the information on Form 1040 as part of the filing process.) When completed, the cover sheet summarizes basic information on the adversary proceeding. The clerk of court needs the information to process the adversary proceeding and prepare required statistical reports on court activity.

The cover sheet and the information contained on it do not replace or supplement the filing and service of pleadings or other papers as required by law, the Bankruptcy Rules, or the local rules of court. The cover sheet, which is largely self-explanatory, must be completed by the plaintiff’s attorney (or by the plaintiff if the plaintiff is not represented by an attorney). A separate cover sheet must be submitted to the clerk for each complaint filed.

Plaintiffs and Defendants. Give the names of the plaintiffs and defendants exactly as they appear on the complaint.

Attorneys. Give the names and addresses of the attorneys, if known.

Party. Check the most appropriate box in the first column for the plaintiffs and the second column for the defendants.

Demand. Enter the dollar amount being demanded in the complaint.

Signature. This cover sheet must be signed by the attorney of record in the box on the second page of the form. If the plaintiff is represented by a law firm, a member of the firm must sign. If the plaintiff is pro se, that is, not represented by an attorney, the plaintiff must sign.

**UNITED STATES BANKRUPTCY COURT
DISTRICT OF CONNECTICUT
BRIDGEPORT DIVISION**

-----;

In re:	Chapter 11
HO WAN KWOK, <i>et al.</i> , ¹	Case No. 22-50073 (JAM)
Debtors.	(Jointly Administered)

-----;

LUC A. DESPINS, CHAPTER 11 TRUSTEE,	Adv. Proceeding No. [_____]
Plaintiff,	
v.	

February 15, 2024

GETTR USA, INC.,	
Defendant.	

-----;

**COMPLAINT OF CHAPTER 11 TRUSTEE SEEKING AVOIDANCE AND RECOVERY
OF POSTPETITION TRANSFERS AND RELATED RELIEF PURSUANT TO
BANKRUPTCY CODE SECTIONS 549 AND 550**

Luc A. Despins, in his capacity as the chapter 11 trustee (the “Trustee”) appointed in the chapter 11 case (the “Chapter 11 Case”) of Ho Wan Kwok (the “Debtor” or “Kwok”), files this adversary complaint (the “Complaint”) against defendant GETTR USA, Inc. (the “Defendant”), stating as follows:

¹ The Debtors in these chapter 11 cases are Ho Wan Kwok (also known as Guo Wengui, Miles Guo, and Miles Kwok, as well as numerous other aliases) (last four digits of tax identification number: 9595), Genever Holdings LLC (last four digits of tax identification number: 8202) and Genever Holdings Corporation. The mailing address for the Trustee, Genever Holdings LLC, and the Genever Holdings Corporation is Paul Hastings LLP, 200 Park Avenue, New York, NY 10166 c/o Luc A. Despins, as Trustee for the Estate of Ho Wan Kwok (solely for purposes of notices and communications).

NATURE OF ACTION

1. The Trustee commences this adversary proceeding to avoid and recover transfers of property of the Debtor's estate perpetrated by the Debtor after the commencement of this Chapter 11 Case and not authorized by the Bankruptcy Court or under Title 11 of the United States Code (the "Bankruptcy Code").

2. The Debtor, through his alter-ego shell company Hamilton Opportunity Fund SPC ("Hamilton") transferred funds in the amount of \$21,000,000 after the Petition Date (as defined herein) to the Defendant as initial transferee.

3. Because these postpetition transfers of estate property were not authorized by the Court or under the Bankruptcy Code, they are subject to avoidance and recovery under sections 549 and 550 of the Bankruptcy Code.

JURISDICTION AND VENUE

4. This Court has subject matter jurisdiction over this adversary proceeding pursuant to 28 U.S.C. § 1334(b).

5. This adversary proceeding has been referred to this Court pursuant to 28 U.S.C. § 157(a).

6. The statutory predicates for the relief sought herein include 11 U.S.C. §§ 549 and 550.

THE PARTIES

7. The Trustee is the chapter 11 trustee in the Chapter 11 Case pursuant to the Bankruptcy Court's order entered on July 8, 2022 [Case No. 22-50073 (the "Main Case") Docket No. 523].

8. The Defendant is a Delaware entity with an address at 3 Columbus Circle, New York, NY 10019.

FACTS

A. Chapter 11 Case

9. The Debtor filed a voluntary petition for relief under Chapter 11 of Title 11 of the Bankruptcy Code on February 15, 2022 (the “Petition Date”) in the United States Bankruptcy Court for the District of Connecticut (the “Court” or “Bankruptcy Court”), thus commencing the above-captioned chapter 11 case (the “Chapter 11 Case”).

10. On March 21, 2022, the Office of the United States Trustee appointed an Official Committee of Unsecured Creditors in this Chapter 11 Case. No examiner has been appointed.

11. The Debtor’s bankruptcy schedules, filed in March 2022 with the Bankruptcy Court, claimed that he owned \$3,850 in assets and had incurred hundreds of millions of dollars of liabilities.² While the Debtor was, indeed, deeply indebted, his schedules failed to disclose the Debtor’s property as held and/or transferred through his many alter-ego shell companies, including GFNY.

12. On June 15, 2022, the Court entered a memorandum of decision and order [Main Case Docket No. 465] directing the United States Trustee to appoint a chapter 11 trustee in the Chapter 11 Case. Pursuant to this order, the United States Trustee selected Luc A. Despins as the Trustee. On July 8, 2022, the Court entered an order granting the appointment of Luc A. Despins as the Trustee in the Chapter 11 Case [Main Case Docket No. 523].

² Schedule of Assets and Liabilities, at 1 (Main Case, Docket No. 78).

B. Debtor's Use of Shell Companies and Trustee's Adversary Proceedings

13. Hamilton³ is among the numerous alter-ego shell companies used by the Debtor to defraud his creditors. For years, the Debtor has orchestrated a “shell game,” employing a convoluted web of shell companies, nominally owned by family members and subordinates, but in reality, controlled by the Debtor. This shell game enabled the Debtor to use, spend, and transfer millions of dollars of cash and other assets while concealing his property from creditors.

14. Since his appointment, the Trustee has commenced a number of adversary proceedings in the Chapter 11 Case to, among other things, establish that the Debtor's shell companies were his alter-egos and/or that such companies and their assets were equitably owned by the Debtor and in several the Bankruptcy Court has already granted such relief.⁴

15. The fact patterns in these litigations consistently involve: (i) Debtor-controlled shell companies held by close family members and/or subordinates, (ii) assets purchased with cash from other Debtor-controlled entities and/or transferred to and among shell entities for no consideration, and (iii) the Debtor benefiting from and having control and dominion over such assets.

16. The Debtor also used his alter egos, including Hamilton, as personal piggy-banks, funding the lavish lifestyle to which he and his family had become accustomed, while concealing assets in these alter egos from his creditors and hindering and delaying creditors from recoveries

³ The Trustee has or will imminently commence an adversary proceeding against Hamilton Opportunity Fund SPC, which adversary proceeding seeks, among other things, a declaratory judgment that Hamilton Opportunity Fund SPC is the alter ego of the Debtor. The Trustee incorporates by reference herein, the Trustee's Complaint filed in such adversary proceeding.

⁴ These include the following adversary proceedings: (i) Luc A. Despina, Chapter 11 Trustee v. HK International Funds Investments (USA) Limited, LLC, et al. [Adv. Proc. No. 22-05003]; (ii) Luc A. Despina, Chapter 11 Trustee v. Greenwich Land LLC, et al. [Adv. Proc. No. 23-05005]; (iii) Luc A. Despina, Chapter 11 Trustee v. Mei Guo [Adv. Proc. No. 23-05008]; (iv) Luc A. Despina, Chapter 11 Trustee v. HCHK Technologies, Inc., et al. [Adv. Proc. No. 23-05013]; (v) Luc A. Despina, Chapter 11 Trustee v. Taurus Fund LLC, et al. [Adv. Proc. No. 23-05017]; (vi) Luc A. Despina, Chapter 11 Trustee v. Golden Spring (New York) Limited [Adv. Proc. 23-05018]; and (vii) Luc A. Despina, Chapter 11 Trustee v. Lamp Capital LLC, et al. [Adv. Proc. 23-05023].

on their claims. The transfers that the Debtor effectuated through these alter egos perpetuated the Debtor's fraudulent scheme. The property of these alter egos, including Hamilton, was at all times property of the Debtor.

C. Debtor's Shell Game and Fraud Continues Postpetition

17. As of the Petition Date, all of the Debtor's property held through his alter egos, including Hamilton, became property of the chapter 11 estate. *See* 11 U.S.C. § 541(a)(1).

18. Following the Petition Date, the Debtor, with blatant disregard for the Bankruptcy Court and his obligations under the Bankruptcy Code, continued to effectuate transfers through numerous alter-ego shell companies, including, without limitation, Hamilton.

19. None of these postpetition transfers were authorized by the Bankruptcy Court nor were such transfers authorized under the Bankruptcy Code.

D. Transfers to the Defendant

20. Subsequent to the Petition Date, the Debtor, through shell companies including Hamilton, or otherwise, transferred property of the Debtor's chapter 11 estate to the Defendant (collectively, the "Transfers"), including, without limitation, as follows:

See SCHEDULE A attached hereto and made a part hereof.

21. At the time of the Transfers, the Debtor had outstanding obligations to creditors of the Debtor's estate.

22. The Defendant was the initial transferee of the Transfers.

FIRST CLAIM

(Claim to Avoid and Recover Unauthorized Postpetition Transfers pursuant to Bankruptcy Code sections 549 and 550(a))

23. The Trustee repeats and realleges the allegations contained in paragraphs 1-22 as if fully set forth herein.

24. The Transfers were made to the Defendant by the Debtor, including through his alter-ego shell company, Hamilton.

25. The Transfers occurred after the Petition Date.

26. The Transfers were not authorized by the Bankruptcy Court or by the Bankruptcy Code.

27. The Transfers constituted the unauthorized transfer of property of the Debtor's chapter 11 estate.

28. The Transfers are avoidable pursuant to section 549(a) of the Bankruptcy Code.

29. Pursuant to section 550(a) of the Bankruptcy Code, the Trustee is entitled to recover the Transfers, or the value thereof, from the Defendant plus interest thereon to the date of payment and the costs of this action.

PRAYER FOR RELIEF

WHEREFORE, for the foregoing reasons, the Trustee respectfully requests that judgment be entered as follows:

1. An order (a) declaring that the Transfers in an amount not less than \$21,000,000 are avoided pursuant to section 549 of the Bankruptcy Code; and (b) an order directing that the Transfers be set aside; and (c) recovery of the Transfers, or the value thereof at the Trustee's option, from the Defendant for the benefit of the Debtor's estate pursuant to section 550(a)(1) of

the Bankruptcy Code;

2. Awarding the Trustee pre-judgment interest at the maximum legal rate from the date of the filing of this Complaint to the date of judgment herein; and

3. Such other and further relief as the Court may deem just, proper, or equitable under the circumstances.

[Remainder of page intentionally left blank.]

SCHEDULE A

Filed Under Seal

EXHIBIT 2

United States Bankruptcy Court
District of Connecticut



In re: HO WAN KWOK, *et al.*,¹

Case Number: 22-50073

Debtors

Chapter: 11

(Jointly Administered)

Luc A. Despins, Chapter 11 Trustee,
Plaintiff,

v.

Gettr USA, Inc.
Defendant(s)

Adversary Proceeding

No: 24-05252 (JAM)

SUMMONS IN AN ADVERSARY PROCEEDING

To the Plaintiff:

In accordance with Fed. R. Bankr. P. 7004(e), on or before **March 4, 2024**, you must serve this Summons and a copy of the Complaint filed on February 15, 2024, on all Defendants in accordance with Fed. R. Bankr. P. 7004(a) or (b), except any Defendants to be served in a foreign country.

If service is made on any named Defendants in a foreign country, you must serve this Summons and a copy of the Complaint filed on February 15, 2024, on all such named Defendants in accordance with Fed. R. Civ. P. 4(f), (h), and (j), made applicable by Fed. R. Bankr. P. 7004(a)(1).

You must also complete the attached Certificate of Service of Process and file the completed Certificate with the Bankruptcy Court electronically or at the address listed on the second page of this Summons.

To the Defendant(s):

YOU ARE SUMMONED and, if you are a Defendant properly served with this Summons and the Complaint in accordance with the instruction above and applicable rules within a judicial district of the United States, pursuant to Fed. R. Bankr. P. 7012(a), you are required to file, electronically or with the Clerk of the Bankruptcy Court at the address in this Summons, a motion or answer to the Complaint on or before 60 days from the service of this Summons.

If you are a Defendant served with this Summons and the Complaint in a foreign country, you are required to file, electronically or with the Clerk of the Bankruptcy Court at the address in this Summons, a motion or answer to the Complaint within 60 days from proper service of the Summons and Complaint, unless the Court orders a different deadline to file a motion or answer to the Complaint upon motion made pursuant to Fed. R. Bankr. P. 7012(a).

¹ The Debtors in these chapter 11 cases are Ho Wan Kwok (also known as Guo Wengui, Miles Guo, and Miles Kwok, as well as numerous other aliases) (last four digits of tax identification number: 9595), Genever Holdings LLC (last four digits of tax identification number: 8202) and Genever Holdings Corporation. The mailing address for the Trustee, Genever Holdings LLC, Genever Holdings Corporation is Paul Hastings LLP, 200 Park Avenue, New York, NY 10166 c/o Luc A. Despins, as Trustee for the Estate of Ho Wan Kwok (solely for purposes of notices and communications).

At the same time, you must also serve a copy of the motion or answer upon the Plaintiff's attorney:

Avram Emmanuel Luft, Esq.
Paul Hastings LLP
200 Park Avenue
New York, NY 10166

If you make a motion under Fed. R. Bankr. P. 7012, your time to answer is governed by Fed. R. Bankr. P. 7012.

IF YOU FAIL TO RESPOND TO THIS SUMMONS, A JUDGMENT BY DEFAULT MAY BE ENTERED AGAINST YOU FOR THE RELIEF DEMANDED IN THE COMPLAINT.

Dated: **February 26, 2024**



Pietro Cicolini
Clerk of Court

United States Bankruptcy Court
District of Connecticut
915 Lafayette Boulevard
Bridgeport, CT 06604

CERTIFICATE OF SERVICE OF PROCESS

Adv. Pro. Number: 24-05252 (JAM)

I, _____, certify that service of this Summons and a
(name)
copy of the complaint was made on _____ by (check one below):
(date)

- ☐ **Mail service:** Regular, First-Class United States mail, postage fully pre-paid, addressed to:
- ☐ **Personal Service:** By leaving the process with defendant or with an officer or agent of defendant at:
- ☐ **Residence Service:** By leaving the process with the following adult at:
- ☐ **Certified Mail Service on an Insured Depository Institution:** By sending the process by certified mail addressed to the following officer of the defendant at:
- ☐ **Publication:** The defendant was served as follows:
- ☐ **State Law:** The defendant was served pursuant to the laws of the State of _____, as follows:

If service was made by personal service, by residence service, or pursuant to state law, I further certify that I am, and at all times during the service of process was, not less than 18 years of age and not a party to the matter concerning which service of process was made.

Under penalty of perjury, I declare that the foregoing is true and correct.

Date

Signature

Print Name

Business Address

City, State, Zip

EXHIBIT 3

**UNITED STATES BANKRUPTCY COURT
DISTRICT OF CONNECTICUT
BRIDGEPORT DIVISION**

	X	
	:	
In re:	:	Chapter 11
	:	
HO WAN KWOK, <i>et al.</i> , ¹	:	Case No. 22-50073 (JAM)
	:	
Debtors.	:	(Jointly Administered)
	:	
	X	
	:	
LUC A. DESPINS, CHAPTER 11	:	
TRUSTEE,	:	
	:	Adv. Proceeding No. 24-05252 (JAM)
Plaintiff,	:	
	:	
v.	:	
	:	
	:	
GETTR USA, INC.,	:	
	:	
Defendant.	:	
	X	

**CERTIFICATE OF SERVICE REGARDING SUMMONS, COMPLAINT, AND NOTICE
OF APPLICABILITY OF AVOIDANCE ACTION PROCEDURES**

On February 15, 2024, Luc A. Despins, in his capacity as the chapter 11 trustee (the “Trustee”) appointed in the chapter 11 case (the “Chapter 11 Case”) of Ho Wan Kwok (the “Debtor”), filed his *Adversary Complaint* and certain exhibits thereto [Adv. Proc. ECF No. 1]

¹ The Debtors in these chapter 11 cases are Ho Wan Kwok (also known as Guo Wengui, Miles Guo, and Miles Kwok, as well as numerous other aliases) (last four digits of tax identification number: 9595), Genever Holdings LLC (last four digits of tax identification number: 8202) and Genever Holdings Corporation. The mailing address for the Trustee, Genever Holdings LLC, and the Genever Holdings Corporation is Paul Hastings LLP, 200 Park Avenue, New York, NY 10166 c/o Luc A. Despins, as Trustee for the Estate of Ho Wan Kwok (solely for purposes of notices and communications).

(collectively, the “Complaint”) using the Court’s case management/electronic case files system (“CM/ECF”).

On February 15, 2024, the Trustee filed the *Notice of Applicability of Avoidance Action Procedures* [Adv. Proc. ECF No. 3] (the “Procedures Notice”).

On February 26, 2024, the *Summons* [Adv. Proc. ECF. No. 4] (the “Summons” and, together with the Complaint, and the Procedures Notice, collectively, the “Served Documents”) via CM/ECF.

On March 4, 2024, I caused the Served Documents to be sent via first-class U.S. Mail, via UPS or Federal Express overnight delivery, and via email to defendant Gettr USA, Inc.. at the following address(es):

Gettr USA, Inc.
3 Columbus Circle,
New York, NY 10019
Attn: Officer, Managing or General Agent

Gettr USA, Inc.
c/o C T Corporation System
28 Liberty Street
New York, NY 10005

Gettr USA, Inc.
c/o The Corporation Trust Company
Corporation Trust Center
1209 Orange Street
Wilmington, DE 19801

Justin Weddle: jweddle@weddlelaw.com

Dated: March 28, 2024
New Haven, Connecticut

LUC A. DESPINS,
CHAPTER 11 TRUSTEE

/s/ Patrick R. Linsey
Patrick R. Linsey (ct29437)
NEUBERT, PEPE & MONTEITH, P.C.
195 Church Street, 13th Floor
New Haven, Connecticut 06510
(203) 781-2847
plinsey@npmlaw.com

Counsel for the Chapter 11 Trustee

EXHIBIT 4

**UNITED STATES BANKRUPTCY COURT
DISTRICT OF CONNECTICUT
BRIDGEPORT DIVISION**

	-----X	
	:	
In re:	:	Chapter 11
	:	
HO WAN KWOK, <i>et al.</i> , ¹	:	Case No. 22-50073 (JAM)
	:	
Debtors.	:	(Jointly Administered)
	:	
	-----X	
	:	
LUC A. DESPINS, CHAPTER 11	:	
TRUSTEE,	:	
	:	Adv. Proceeding No. 24-05252
Plaintiff,	:	
	:	
v.	:	
	:	
	:	February 13, 2025
	:	
GETTR USA, INC.,	:	
	:	
Defendant.	:	
	-----X	

**FIRST AMENDED COMPLAINT OF CHAPTER 11 TRUSTEE SEEKING
AVOIDANCE AND RECOVERY OF FRAUDULENT TRANSFERS AND
POSTPETITION TRANSFERS AND RELATED RELIEF PURSUANT TO
BANKRUPTCY CODE SECTIONS 544, 548, 549 AND 550 AND NEW YORK DEBTOR
& CREDITOR LAW SECTIONS 273(a) AND 276**

Luc A. Despins, in his capacity as the chapter 11 trustee (the “Trustee”) appointed in the chapter 11 case (the “Chapter 11 Case”) of Ho Wan Kwok (the “Debtor” or “Kwok”), files this

¹ The Debtors in these chapter 11 cases are Ho Wan Kwok (also known as Guo Wengui, Miles Guo, and Miles Kwok, as well as numerous other aliases) (last four digits of tax identification number: 9595), Genever Holdings LLC (last four digits of tax identification number: 8202) and Genever Holdings Corporation. The mailing address for the Trustee, Genever Holdings LLC, and the Genever Holdings Corporation is Paul Hastings LLP, 200 Park Avenue, New York, NY 10166 c/o Luc A. Despins, as Trustee for the Estate of Ho Wan Kwok (solely for purposes of notices and communications).

amended adversary complaint (the “Complaint”) against defendant GETTR USA, Inc. (the “Defendant”), stating as follows:

NATURE OF ACTION

1. The Trustee commences this adversary proceeding to avoid and recover transfers of property of the Debtor’s estate perpetrated by the Debtor after the commencement of this Chapter 11 Case and not authorized by the Bankruptcy Court or under Title 11 of the United States Code (the “Bankruptcy Code”).

2. The Debtor, through his alter-ego shell company GFNY Inc. (“GFNY”), transferred funds in the amount of \$59,453.40 prior to the Petition Date (as defined herein) to the Defendant as the initial transferee.

3. These transfers were actually fraudulent, because the Debtor effectuated them as part of his “shell game,” and they were made with the intent to hinder, delay, and/or defraud the Debtor’s creditors.

4. Following the Petition Date, the Debtor, through his alter-ego shell companies, Hamilton Opportunity Fund SPC (“Hamilton”), GFNY and ACA Capital Group Ltd (“ACA Capital” and collectively with Hamilton and GFNY, the “Relevant Alter Egos”) transferred funds in the amount of \$35,599,740.00 after the Petition Date (as defined herein) to the Defendant as initial transferee.

5. Because these postpetition transfers of estate property were not authorized by the Court or under the Bankruptcy Code, they are subject to avoidance and recovery under sections 549 and 550 of the Bankruptcy Code.

JURISDICTION AND VENUE

6. This Court has subject matter jurisdiction over this adversary proceeding pursuant to 28 U.S.C. § 1334(b).

7. This adversary proceeding has been referred to this Court pursuant to 28 U.S.C. § 157(a).

8. The statutory predicates for the relief sought herein include sections 544, 548, 549, and 550 of the Bankruptcy Code and New York Debtor & Creditor Law sections 273 and 276² or any other applicable state law equivalents.

THE PARTIES

9. The Trustee is the chapter 11 trustee in the Chapter 11 Case pursuant to the Bankruptcy Court's order entered on July 8, 2022 [Case No. 22-50073 (the "Main Case") Docket No. 523].

10. The Defendant is a Delaware entity with an address at 3 Columbus Circle, New York, NY 10019.

FACTS

A. Chapter 11 Case

11. The Debtor filed a voluntary petition for relief under Chapter 11 of Title 11 of the Bankruptcy Code on February 15, 2022 (the "Petition Date") in the United States Bankruptcy

² All statutory references to New York Debtor and Creditor Law will hereinafter be referred to as "N.Y. Debt. & Cred. Law".

Court for the District of Connecticut (the “Court” or “Bankruptcy Court”), thus commencing the above-captioned chapter 11 case (the “Chapter 11 Case”).

12. On March 21, 2022, the Office of the United States Trustee appointed an Official Committee of Unsecured Creditors in this Chapter 11 Case. No examiner has been appointed.

13. The Debtor’s bankruptcy schedules, filed in March 2022 with the Bankruptcy Court, claimed that he owned \$3,850 in assets and had incurred hundreds of millions of dollars of liabilities.³ While the Debtor was, indeed, deeply indebted, his schedules failed to disclose the Debtor’s property as held and/or transferred through his many alter-ego shell companies, including the Relevant Alter Egos.

14. On June 15, 2022, the Court entered a memorandum of decision and order [Main Case Docket No. 465] directing the United States Trustee to appoint a chapter 11 trustee in the Chapter 11 Case. Pursuant to this order, the United States Trustee selected Luc A. Despins as the Trustee. On July 8, 2022, the Court entered an order granting the appointment of Luc A. Despins as the Trustee in the Chapter 11 Case [Main Case Docket No. 523].

B. Debtor’s Use of Shell Companies and Trustee’s Adversary Proceedings

15. The Relevant Alter Egos are among the numerous alter-ego shell companies used by the Debtor to defraud his creditors. For years, the Debtor has orchestrated a “shell game,” employing a convoluted web of shell companies, nominally owned by family members and subordinates, but in reality, controlled by the Debtor. This shell game enabled the Debtor to use, spend, and transfer millions of dollars of cash and other assets while concealing his property from creditors.

³ Schedule of Assets and Liabilities, at 1 (Main Case, Docket No. 78).

16. Since his appointment, the Trustee has commenced a number of adversary proceedings in the Chapter 11 Case to, among other things, establish that the Debtor's shell companies were his alter-egos and/or that such companies and their assets were equitably owned by the Debtor and in several the Bankruptcy Court has already granted such relief.⁴

17. The Trustee is pursuing this or substantially similar relief with respect to the Relevant Alter Egos in *Despins v. ACA Capital Group Ltd, et al.* [Adv. Proc. No. 24-05249] (the "Omnibus A.P."). The Trustee incorporates by reference herein his Complaint filed in the Omnibus A.P. (Omnibus A.P., Docket No. 1).

18. The fact patterns in these litigations consistently involve: (i) Debtor-controlled shell companies held by close family members and/or subordinates, (ii) assets purchased with cash from other Debtor-controlled entities and/or transferred to and among shell entities for no consideration, and (iii) the Debtor benefiting from and having control and dominion over such assets.

C. Debtor's Conduct to Hinder, Delay, and/or Defraud Creditors

19. In addition to the matters addressed in the Trustee's adversary proceedings, the Bankruptcy Court has found that the Debtor was the beneficial owner of Ace Decade Limited (and

⁴ These include the following adversary proceedings: (i) *Luc A. Despins, Chapter 11 Trustee v. HK International Funds Investments (USA) Limited, LLC*, et al. [Adv. Proc. No. 22-05003]; (ii) *Luc A. Despins, Chapter 11 Trustee v. Greenwich Land LLC*, et al. [Adv. Proc. No. 23-05005]; (iii) *Luc A. Despins, Chapter 11 Trustee v. Mei Guo* [Adv. Proc. No. 23-05008]; (iv) *Luc A. Despins, Chapter 11 Trustee v. HCHK Technologies, Inc.*, et al. [Adv. Proc. No. 23-05013]; (v) *Luc A. Despins, Chapter 11 Trustee v. Taurus Fund LLC*, et al. [Adv. Proc. No. 23-05017]; (vi) *Luc A. Despins, Chapter 11 Trustee v. Golden Spring (New York) Limited* [Adv. Proc. 23-05018]; (vii) *Luc A. Despins, Chapter 11 Trustee v. Lamp Capital LLC*, et al. [Adv. Proc. 23-05023]; (viii) *Luc A. Despins, Chapter 11 Trustee v. AA Global Ventures Limited.*, et al. [Adv. Proc. 24-05322]; and (ix) *Luc A. Despins, Chapter 11 Trustee v. Bouillor Holdings Limited*, et al. [Adv. Proc. No. 24-5311].

through it, Dawn State Limited) and that the Debtor controlled and employed Ace Decade Limited's nominee shareholder, Yvette Wang.⁵

20. The Bankruptcy Court has also found that the "G Entities" (Gettr, G Fashion, G Music, GClubs, GNews and GEdu), the New Federal State of China and the Rule of Law Foundation, as well as other purportedly independent entities and organizations, were controlled by the Debtor,⁶ led by the Debtor⁷ and/or served "the purposes of... and as business vehicles of" the Debtor.⁸

21. Prior to the Petition Date, Judge Liman of the United States District Court for the Southern District of New York found that Eastern Profit Corporation Limited, an entity originally owned by one of the Debtor's chefs before its transfer to Debtor's daughter, was "in essence, a shell corporation" for the Debtor.⁹

22. The Debtor has gone to great lengths to hinder and delay the collection efforts of one of his largest creditors, *i.e.*, Pacific Alliance Asia Opportunity Fund, L.P. ("PAX"). In 2017, PAX sued the Debtor in the Supreme Court of the State of New York (the "New York Court"), Index No. 652077/2017 (the "PAX Case"), seeking judgment for monies owed. On February 3, 2021, PAX obtained a judgment from the New York Court against the Debtor in the sum of

⁵ Order Granting Motion to Hold Debtor in Contempt of Corporate Governance Order, ¶¶ 1, 4 (Jan. 24, 2023, Docket No. 1372 ("Corp. Governance Contempt Order").

⁶ *Corrected Memorandum of Decision Granting in Part Motion for Preliminary Injunction*, ¶ 3 (Adv. Proc. No. 22-05032, January 13, 2023 ("The Debtor also controls Saraca Media Group and a related entity 'GTV'").

⁷ *Id.* at ¶ 7 ("The Debtor is the leader of The Whistleblower Movement, NFSC, ROLF and Himalaya.").

⁸ *Id.* ("The Whistleblower Movement, NFSC, ROLF, GSeries, and Himalaya serve the purposes of the Debtor, serve as business vehicles for the Debtor, and their members are personally loyal to the Debtor.").

⁹ *Eastern Profit Corp. Ltd. v. Strategic Vision US LLC*, No. 18-CV-2185 (LJL) 2021 WL 2554631, at *1 (S.D.N.Y. June 22, 2021).

\$116,402,019.57 (the “PAX Judgment”). PAX sought to enforce the PAX Judgment by levying the Debtor’s assets—including the Lady May, which the Debtor falsely claimed was owned by his daughter, and the Debtor’s luxury apartment in Manhattan, which the Debtor falsely claimed was held in trust for the Debtor’s son. The Debtor’s defiance of New York Court orders in post-judgment proceedings eventually resulted in the Debtor incurring contempt penalties of \$134 million.

23. The Debtor also used his alter egos, including the Relevant Alter Egos, as personal piggy-banks, funding the lavish lifestyle to which he and his family had become accustomed, while concealing assets in these alter egos from his creditors and hindering and delaying creditors from recoveries on their claims. The transfers that the Debtor effectuated through these alter egos perpetuated the Debtor’s fraudulent scheme.

24. The Debtor has testified before the Bankruptcy Court that he has insufficient assets to pay his liabilities and that his luxurious lifestyle is funded by his family through businesses nominally held by family members.¹⁰ The Debtor scheduled only \$3,850 in assets.¹¹

25. In March 2023, the Debtor was arrested by federal authorities and held without bail. On July 16, 2024, following a trial in the United States District Court for the Southern District of New York, the Debtor was convicted of nine felony counts, *i.e.*, racketeering conspiracy, conspiracy to commit wire fraud and bank fraud, money laundering conspiracy, conspiracy to commit securities fraud, wire fraud in connection with the Farm Loan Program, securities fraud in

¹⁰ Hearing on Debtor’s Motion for Entry of Interim and Final DIP Orders (I) Authorizing the Debtor to Obtain Unsecured, Subordinated Postpetition Financing and (II) Scheduling Interim and Final Hearings, and (III) Granting Related Relief (Main Case, April 27, 2022)

¹¹ See n.3.

connection with the Farm Loan program, wire fraud in connection with G|CLUBS, securities fraud in connection with G|CLUBS, and wire fraud in connection with the Himalaya Exchange.

26. In its criminal indictment of the Debtor, the United States Government asserted that the Debtor and his co-defendants “utilized more than approximately 500 accounts held in the names of *at least 80 different entities or individuals* to launder more than \$1 billion in fraud proceeds.”¹²

27. The property of the Debtor’s alter egos, including the Relevant Alter Egos, was at all times prior to the Petition Date property of the Debtor.

28. At all times relevant herein, the Debtor conducted business in New York, New York, including direction of the Transfers (as defined herein).

D. Debtor’s Shell Game and Fraud Continues Postpetition

29. As of the Petition Date, all of the Debtor’s property held through his alter egos, including Hamilton, became property of the chapter 11 estate. *See* 11 U.S.C. § 541(a)(1).

30. Following the Petition Date, the Debtor, with blatant disregard for the Bankruptcy Court and his obligations under the Bankruptcy Code, continued to effectuate transfers through numerous alter-ego shell companies, including, without limitation, ACA Capital and GFNY.

31. None of these postpetition transfers were authorized by the Bankruptcy Court nor were such transfers authorized under the Bankruptcy Code.

E. Transfers Made with Intent to Hinder, Delay, or Defraud Creditors

¹² *See* Memorandum of Law of the United States of America in Opposition to Defendant Yanping Wang’s Motion for Pretrial Release at 29, attached as Exhibit B in the Reply of Chapter 11 Trustee to G Club Operations LLC’s Supplemental Objection to Trustee’s Motion to Compel and Request for Related Relief (June 23, 2023, Main Case Docket No. 1934).

32. The Transfers (as defined herein) at issue in this Complaint were made with the intent to hinder, delay, and/or defraud the Debtor's creditors inasmuch as they were made through the Debtor's alter-ego shell companies operated as a part of the Debtor's shell game.

33. The Debtor intentionally orchestrated his financial affairs in this manner in order to conceal and dissipate millions of dollars in assets while falsely pleading poverty to his many creditors. The Debtor claimed to be destitute while simultaneously spending heavily to maintain a billionaire lifestyle for himself and for his family members and close associates.

34. The assets concealed and dissipated by the Debtor included funds that he obtained from the victims of his cryptocurrency, securities, and other fraud schemes. As a result of this conduct, the Debtor has been convicted of multiple felony fraud, money laundering, and racketeering charges in a criminal case pending in the U.S. District Court for the Southern District of New York. *See United States v. Ho Wan Kwok*, case no. 1:23-cr-00118-AT [ECF No. 395] (July 18, 2024 S.D.N.Y.).

35. The Debtor knew and intended that by concealing and dissipating his assets in this manner there would not be sufficient assets remaining to repay his creditors—including the many victims of his frauds. These transfers were thus necessarily made with the intent to hinder, delay, and/or defraud the Debtor's creditors

F. Transfers to the Defendant

36. Prior to the Petition Date, the Debtor, using his alter ego shell company, GFNY, or otherwise, transferred the Debtor's property to the Defendant (the "Prepetition Transfers"), including, without limitation, as follows:

See **SCHEDULE A** attached hereto and made a part hereof

37. Subsequent to the Petition Date, the Debtor, through shell companies including the Relevant Alter Egos, or otherwise, transferred property of the Debtor's chapter 11 estate to the Defendant (collectively, the "Postpetition Transfers"), including, without limitation, as follows:

See **SCHEDULE B** attached hereto and made a part hereof.

38. At the time of the Prepetition Transfers and the Postpetition Transfers (collectively, the "Transfers"), the Debtor had outstanding obligations to creditors of the Debtor's estate.

39. The Defendant was the initial transferee of the Transfers.

FIRST CLAIM

(Claim to Avoid and Recover Actual Fraudulent Transfers Pursuant to Bankruptcy Code sections 548(a)(1)(A) and 550(a))

40. The Trustee repeats and realleges the allegations contained in paragraphs 1-39 as if fully set forth herein.

41. The Prepetition Transfers were made by the Debtor through his alter ego, GFNY, with the actual intent to hinder, delay and/or defraud his creditors.

42. The Debtor's intent to hinder, delay, and/or defraud his creditors in effectuating the Prepetition Transfers is shown by, among other things:

- a. The Prepetition Transfers were effectuated using alter-ego shell companies;
- b. The Prepetition Transfers were concealed from the Debtor's creditors;
- c. The Prepetition Transfers were effectuated as part of the Debtor's "shell game" with the aid of the Debtor's family members and other lieutenants and subordinates that he controlled in an effort to conceal and shield assets;

d. The Prepetition Transfers furthered the Debtor's fraudulent conduct by enabling the Debtor to profit from his fraud without subjecting his property to the reach of his creditors;

e. At the time of the Prepetition Transfers, the Debtor was being sued, including by PAX in the PAX Case; and

f. At the time of the Prepetition Transfers, the Debtor was insolvent or undercapitalized.

43. The Prepetition Transfers are avoidable by the Trustee pursuant to section 548(a)(1)(A) of the Bankruptcy Code and are recoverable pursuant to section 550(a) of the Bankruptcy Code.

SECOND CLAIM

(Claim to Avoid and Recover Actual Fraudulent Transfers pursuant to N.Y. Debt. & Cred. Law sections 273 and 276, and Bankruptcy Code sections 544(b) and 550(a))

44. The Trustee repeats and realleges the allegations contained in paragraphs 1-39 as if fully set forth herein.

45. The Prepetition Transfers were made by the Debtor, through his alter ego company, GFNY, with the actual intent to hinder, delay and/or defraud his creditors.

46. The Debtor's intent to hinder, delay, and/or defraud his creditors in effectuating the Prepetition Transfers is shown by, among other things:

- a. The Prepetition Transfers were effectuated using alter-ego shell companies;
- b. The Prepetition Transfers were concealed from the Debtor's creditors;

c. The Prepetition Transfers were effectuated as part of the Debtor's "shell game" with the aid of the Debtor's family members and other lieutenants and subordinates that he controlled in an effort to conceal and shield assets;

d. The Prepetition Transfers furthered the Debtor's fraudulent conduct by enabling the Debtor to profit from his fraud without subjecting his property to the reach of his creditors;

e. At the time of the Prepetition Transfers, the Debtor was being sued, including by PAX in the PAX Case; and

f. At the time of the Prepetition Transfers, the Debtor was insolvent or undercapitalized.

47. The Prepetition Transfers are avoidable by the Trustee pursuant to N.Y. Debt. & Cred. Law sections 273(a)(1) and 276, and section 544(b) of the Bankruptcy Code and recoverable pursuant to section 550(a) of the Bankruptcy Code.

THIRD CLAIM

(Claim to Avoid and Recover Unauthorized Postpetition Transfers pursuant to Bankruptcy Code sections 549 and 550(a))

48. The Trustee repeats and realleges the allegations contained in paragraphs 1-39 as if fully set forth herein.

49. The Postpetition Transfers were made to the Defendant by the Debtor, including through his alter-ego shell companies, Hamilton, ACA Capital and GFNY.

50. The Postpetition Transfers occurred after the Petition Date.

51. The Postpetition Transfers were not authorized by the Bankruptcy Court or by the Bankruptcy Code.

52. The Postpetition Transfers constituted the unauthorized transfer of property of the Debtor's chapter 11 estate.

53. The Postpetition Transfers are avoidable pursuant to section 549(a) of the Bankruptcy Code.

54. Pursuant to section 550(a) of the Bankruptcy Code, the Trustee is entitled to recover the Postpetition Transfers, or the value thereof, from the Defendant plus interest thereon to the date of payment and the costs of this action.

PRAYER FOR RELIEF

WHEREFORE, for the foregoing reasons, the Trustee respectfully requests that judgment be entered as follows:

1. On the First Claim, (a) an order declaring that the Transfers in an amount not less than \$59,453.40 are avoided pursuant to section 548(a)(1)(A) of the Bankruptcy Code; (b) an order directing that the Prepetition Transfers be set aside; and (c) recovery of the Prepetition Transfers, or the value thereof at the Trustee's option, from the Defendant for the benefit of the Debtor's estate pursuant to section 550(a)(1) of the Bankruptcy Code;

2. On the Second Claim, (a) an order declaring that the Prepetition Transfers in an amount not less than \$59,453.40 are avoided pursuant to section 544(b) of the Bankruptcy Code and N.Y. Debt. & Cred. Law sections 273(a)(1) and 276; (b) an order directing that the Prepetition Transfers be set aside; and (c) recovery of the Prepetition Transfers, or the value thereof at the Trustee's option, from the Defendant for the benefit of the Debtor's estate pursuant to N.Y. Debt & Cred. Law section 276 and section 550(a)(1) of the Bankruptcy Code;

3. On the Third Claim, an order (a) declaring that the Postpetition Transfers in an amount not less than \$35,599,740.00 are avoided pursuant to section 549 of the Bankruptcy Code; and (b) an order directing that the Postpetition Transfers be set aside; and (c) recovery of the Postpetition Transfers, or the value thereof at the Trustee's option, from the Defendant for the benefit of the Debtor's estate pursuant to section 550(a)(1) of the Bankruptcy Code;

4. Awarding the Trustee pre-judgment interest at the maximum legal rate from the date of the filing of this Complaint to the date of judgment herein; and

5. Such other and further relief as the Court may deem just, proper, or equitable under the circumstances.

Dated: February 13, 2025
New Haven, CT

LUC A. DESPINS,
CHAPTER 11 TRUSTEE

By: /s/ Douglas S. Skalka

Douglas S. Skalka (ct00616)
Patrick R. Linsey (ct29437)
NEUBERT, PEPE & MONTEITH, P.C.
195 Church Street, 13th Floor
New Haven, Connecticut 06510
(203) 781-2847
dskalka@npmlaw.com
plinsey@npmlaw.com

Counsel for the Chapter 11 Trustee

SCHEDULE A

FILED UNDER SEAL

SCHEDULE B

FILED UNDER SEAL

EXHIBIT B

**UNITED STATES BANKRUPTCY COURT
DISTRICT OF CONNECTICUT
BRIDGEPORT DIVISION**

	X	
	:	
In re:	:	Chapter 11
	:	
HO WAN KWOK, <i>et al.</i> , ¹	:	Case No. 22-50073 (JAM)
	:	
Debtors.	:	(Jointly Administered)
	:	
	X	
	:	
LUC A. DESPINS, CHAPTER 11	:	
TRUSTEE,	:	
	:	Adv. Proceeding No. 24-05252
Plaintiff,	:	
	:	
v.	:	
	:	
GETTR USA, INC.,	:	
	:	
	:	
Defendant.	:	
	X	

[PROPOSED] ENTRY OF DEFAULT

It appears from the record that defendant Gettr USA, Inc. (the “Defaulting Defendant”) has failed to plead or otherwise defend in this case as required by law.

Therefore, default is entered against the Defaulting Defendant as authorized by Rule 7055 of the Federal Rules of Bankruptcy Procedure.

Dated: _____

Pietro Cicolini
Clerk of Court

¹ The Debtors in these chapter 11 cases are Ho Wan Kwok (also known as Guo Wengui, Miles Guo, and Miles Kwok, as well as numerous other aliases) (last four digits of tax identification number: 9595), Genever Holdings LLC (last four digits of tax identification number: 8202) and Genever Holdings Corporation. The mailing address for the Trustee, Genever Holdings LLC, and the Genever Holdings Corporation is Paul Hastings LLP, 200 Park Avenue, New York, NY 10166 c/o Luc A. Despina, as Trustee for the Estate of Ho Wan Kwok (solely for purposes of notices and communications).

**UNITED STATES BANKRUPTCY COURT
DISTRICT OF CONNECTICUT
BRIDGEPORT DIVISION**

	X	
	:	
In re:	:	Chapter 11
	:	
HO WAN KWOK, <i>et al.</i> , ¹	:	Case No. 22-50073 (JAM)
	:	
Debtors.	:	(Jointly Administered)
	:	
	X	
	:	
LUC A. DESPINS, CHAPTER 11	:	
TRUSTEE,	:	
	:	Adv. Proceeding No. 24-05252
Plaintiff,	:	
	:	
v.	:	
	:	
GETTR USA, INC.,	:	
	:	
	:	
Defendant.	:	
	X	

**CERTIFICATE OF SERVICE REGARDING
REQUEST FOR CLERKS ENTRY OF DEFAULT**

The undersigned hereby certifies that on February 26, 2026, the foregoing was filed electronically using the Court’s case management/electronic case files system (“CM/ECF”). Notice of the foregoing document was sent at the time of filing to all parties appearing in the above-captioned adversary proceeding automatically via email operation of CM/ECF.

In addition, on February 26, 2026, the foregoing was sent via Federal Express to the Defaulting Defendant at the following addresses:

¹ The Debtors in these chapter 11 cases are Ho Wan Kwok (also known as Guo Wengui, Miles Guo, and Miles Kwok, as well as numerous other aliases) (last four digits of tax identification number: 9595), Genever Holdings LLC (last four digits of tax identification number: 8202) and Genever Holdings Corporation. The mailing address for the Trustee, Genever Holdings LLC, and the Genever Holdings Corporation is Paul Hastings LLP, 200 Park Avenue, New York, NY 10166 c/o Luc A. Despina, as Trustee for the Estate of Ho Wan Kwok (solely for purposes of notices and communications).

Gettr USA, Inc.
3 Columbus Circle
New York, NY 10019
Attn: Officer, Managing or General Agent

Gettr USA, Inc.
c/o The Corporation Trust Company
Corporation Trust Center
1209 Orange Street
Wilmington, DE 19801

Gettr USA, Inc.
c/o C T Corporation System
28 Liberty Street
New York, NY 10005

Justin Weddle
jweddle@weddlelaw.com.

Dated: February 26, 2026
New Haven, CT

LUC A. DESPINS,
CHAPTER 11 TRUSTEE

By: /s/ Erin T. Ryan
Patrick R. Linsey (ct29437)
Erin T. Ryan (ct32005)
Douglas S. Skalka (ct00616)
NEUBERT, PEPE & MONTEITH, P.C.
195 Church Street, 13th Floor
New Haven, Connecticut 06510
(203) 821-2000
plinsey@npmlaw.com
eryan@npmlaw.com
dskalka@npmlaw.com

Exhibit 6

**UNITED STATES BANKRUPTCY COURT
DISTRICT OF CONNECTICUT**

In re:

HO WAN KWOK, *et al.*,¹

Debtors.

Chapter 11

Case No.: 22-50073 (JAM)

(Jointly Administered)

LUC A. DESPINS, Chapter 11 Trustee,

Plaintiff,

v.

Adv. Pro. No.: 24-05252 (JAM)

GETTR USA, INC.,

Defendant.

ENTRY OF DEFAULT

On February 15, 2024, Luc A. Despins, in his capacity as the Chapter 11 Trustee (“Trustee”) of the Chapter 11 case of Ho Wan Kwok initiated this adversary proceeding by filing a complaint (the “Complaint”) against the defendant, Gettr USA, Inc. (the “Defendant”). (ECF No. 1).

On February 26, 2024, a Summons and Notice of Pretrial Conference was issued (the “Summons,” ECF No. 4). Upon proper service made in accordance with Fed. R. Civ. P. 4 and Fed. R. Bankr. P. 7004, the Summons provides that parties served with the Summons and Complaint within a judicial district of the United States have 60 days from service of the Summons to answer or respond to the Complaint and parties served with the Summons and Complaint in a foreign country have 60 days from service of the Summons to answer or respond to the Complaint.

¹ The Debtors in these chapter 11 cases are Ho Wan Kwok (also known as Guo Wengui, Miles Guo, and Miles Kwok, as well as numerous other aliases) (last four digits of tax identification number: 9595), Genever Holdings LLC (last four digits of tax identification number: 8202) and Genever Holdings Corporation. The mailing address for the Trustee, Genever Holdings LLC, and Genever Holdings Corporation is Paul Hastings LLP, 200 Park Avenue, New York, NY 10166 c/o Luc A. Despins, as Trustee for the Estate of Ho Wan Kwok (solely for purposes of notices and communications).

On March 5, 2024, the Plaintiff caused the Defendant to be served with the Summons and Complaint via first-class U.S. Mail and via Federal Express overnight delivery to:

Gettr USA, Inc.
Attn: Officer, Managing or General Agent
3 Columbus Circle
New York, NY 10019

Gettr USA, Inc.
c/o The Corporation Trust Company
Corporation Trust Center
1209 Orange Street
Wilmington, DE 19801

Gettr USA, Inc.
c/o C T Corporation System
28 Liberty Street
New York, NY 10005

And via email on March 4, 2024, to counsel for defendant Gettr USA, Inc., Justin Weddle,
at: jweddle@weddlelaw.com.

(ECF No. 9).

Therefore, the Defendant had until December 15, 2025, to timely answer or otherwise respond to the Complaint. No timely answer or response was filed.

On February 26, 2026, the Trustee filed a Request for Entry of Default as to the Defendant for its failure to timely plead or otherwise defend the allegations in the Complaint. (ECF No. 29).

A review of the docket indicates the Defendant was served with the Summons and Complaint and has failed to timely plead or otherwise defend the allegations in the Complaint. Therefore, a default is

entered against the Defendant, Gettr USA, Inc., in accordance with Fed. R. Civ. P. 55(a), as made applicable in this adversary proceeding through Fed. R. Bankr. P. 7055.

Dated: March 2, 2026.



Pietro Cicolini
Clerk of Court

United States Bankruptcy Court
District of Connecticut
915 Lafayette Boulevard
Bridgeport, CT 06604

Tel. (203) 579-5808
VCIS* (866) 222-8029
* Voice Case Information System
<http://www.ctb.uscourts.gov>